



Republic of the Philippines
SENATE
Pasay City

JOURNAL

SENATE SITTING AS AN
IMPEACHMENT COURT
ON THE IMPEACHMENT TRIAL OF
VICE-PRESIDENT
SARA ZIMMERMAN DUTERTE

IMPEACHMENT TRIAL NO. 11
WEDNESDAY, 29 JULY 2026

PREPARED BY THE
LEGISLATIVE JOURNAL SERVICE
SENATE OF THE PHILIPPINES

IMPEACHMENT TRIAL NO. 11

Wednesday, July 29, 2026

PROCLAMATION OF THE SERGEANT-AT-ARMS

The Sergeant-at-Arms, PMGen Alfred S. Corpus, commanded all persons, on pain of penalty, to keep silent while the Senate is sitting for the trial of the Articles of Impeachment against Vice President Sara Zimmerman Duterte.

CALL TO ORDER

At 10:00 a.m., Wednesday, July 29, 2026, the Senate President, Win Gatchalian, with the Senate sitting as an Impeachment Court, called the impeachment trial of Vice President Sara Zimmerman Duterte to order.

PRAYER

The Court observed a minute of silent prayer.

ROLL CALL

Upon direction of the Senate President, the Clerk of Court, Atty. Renato N. Bantug Jr., called the roll, to which the following senator-judges responded:

Aquino, B.	Pangilinan, F. N.
Ejercito, J. V.	Sotto III, V. C.
Escudero, F. G.	Tulfo, E. T.
Gatchalian, W. T.	Tulfo, R. T.
Lacson, P. M.	Villanueva, J.
Lapid, M. M.	Villar, C. A.
Marcos, I. R.	Villar, M. A.

With 14 senators present, the Chair declared the presence of a quorum.

Senator-Judges Cayetano (A), Cayetano (P), Hontiveros, Legarda, Go, Padilla, and Zubiri were also present.

Senator-Judges Estrada and Marcoleta were under detention and unable to attend.

Senator-Judge Dela Rosa was absent.

In accordance with the *Rules of Procedure on Impeachment Trials*, Senate President Gatchalian recognized the duly-elected Presiding Officer, Senator-Judge Francis "Chiz" G. Escudero, to preside over the proceedings of the Impeachment Court.



APPROVAL OF THE JOURNAL

Upon motion of the Presiding Officer, there being no objection, the Body dispensed with the reading of *Journal* No. 10 of the Senate sitting as an Impeachment Court on July 22, 2026 and considered the same as approved.

CALLING OF THE CASE

Upon direction of the Presiding Officer, the Clerk of Court called Case No. 004-2026, titled "*In the Matter of the Impeachment Trial of Vice President Sara Zimmerman Duterte.*"

APPEARANCES

The Presiding Officer directed the parties to enter their appearances.

Representative Gerville Luistro entered the appearances previously entered on behalf of the Prosecution.

Atty. Michael Poa entered the same appearances on behalf of the Respondent.

It was noted that Representative Joel Chua would serve as Head Prosecutor for Article I.

OPENING STATEMENT OF THE COUNSEL FOR THE PROSECUTION

Representative Chua. Good morning, Your Honor. Your Honor, same appearance for the Prosecution. Your Honor, may we be given five-minute opening statement? May we request Representative Leila de Lima to be recognized by the Chair, Your Honor?

The Presiding Officer. The Chair would like to remind the Honorable De Lima, if indeed she will make an opening statement, to kindly avoid conclusions of both fact and law, as we have previously agreed upon and raised by the Defense in previous hearings and as pointed out by several Senator-Judges. With that conditionality, the Honorable De Lima may proceed with her opening statement.

Mr. Poa. Your Honor, may we comment on that matter?

The Presiding Officer. Yes, what is the pleasure of Atty. Poa?

Mr. Poa. Your Honor, I would like to apologize for having to comment on this matter, but as far as I recall, the Presiding Officer already made a ruling before against opening statements, Your Honors.

The Presiding Officer. Again, I will be very conscious, Honorable De Lima, with respect to statements of fact and law that are not coming out from the mouth of any witnesses you will be presenting. So, kindly be precise and short with respect to your opening statements. You may proceed, Ma'am, subject to those reminders.

Representative De Lima. Thank you, Mr. Presiding Officer. This is about five minutes or a little more than five minutes.

Mr. Senate President, Mr. Presiding Officer, Honorable Senator-Judges, *mga kababayan, magandang umaga po. Sa ating pagba-budget para sa pamilya, dahil hindi naman unli ang pera, masinop ang ating paggasta, sa talagang kailangan at kapaki-pakinabang natin nilalaan. Ganyan din dapat sa pondo ng bayan.*

Sa yugtong ito ng paglilitis, pag-uusapan natin ang confidential funds. Ito ang budget para sa mga sensitibo at surveillance-related activities upang suportahan ang mandato ng mga civilian agencies.

But a budget that is intended for confidential operations does not mean that the conduct of

the officials involved in the handling of people's money is exempted from the demands of transparency, scrutiny, and accountability.

"Public office is a public trust," *iyang ang sabi ng Konstitusyon. Sakop nito ang lahat ng nasa gobyerno. At ang utos na iyan ay hindi puwedeng balewalain dahil confidential lang or confidential ang pondo. Ang confidentiality ay para protektahan ang lehitimong operasyon at informant. Hindi ito pahintulot para mag-imbento ng pangalan at dokumento. Hindi ito palusot para ibulsa ang pera. Kung confidential ang pondo, lalo pa ngang mataas ang pananagutang kaakibat nito.*

The Constitution entrusts this Court with the solemn duty to determine whether the respondent Vice President committed culpable violation of the Constitution, graft and corruption, and betrayal of public trust. The evidence will show that she did.

This case, Article I, is about P612.5 million in confidential funds entrusted to VP Sara Duterte through the Office of the President and the Department of Education. This is not about one missing receipt. This is not about a clerical error or accounting mistake. The evidence will reveal a pattern, a systemic course of conduct...

Mr. Poa. Your Honor.

Representative De Lima. ... that taken as a whole demonstrates graft and corruption and betrayal of public trust.

Mr. Poa. Your Honors, I apologize to—

The Presiding Officer. With the permission of the Honorable De Lima. Yes, Counsel for the Respondent.

Mr. Poa. Again, Your Honors, I think we have to object to the statements being made by the Honorable De Lima, with all due respect, of course. Your Honors, they can do that through the offer of their evidence, Your Honor.

The Presiding Officer. Chair will instruct the Honorable De Lima to kindly limit her statements. I was listening intently in the beginning, it was okay, Honorable De Lima, but later on, you did make conclusions of law already, which the Chair orders to be stricken from the record.

You may wind up, Honorable De Lima. But kindly avoid conclusions of fact and law.

Mr. Poa. Your Honors, please, if I may just be given two seconds.

The Presiding Officer. Yes.

Mr. Poa. Your Honors, *ang naging problema natin noong huling pagkakataon na pinayagan natin iyong ganitong statement at sinasabi nga ng Presiding Officer is kahit naman i-strike off the record natin ay narinig na po at nasabi na.* So, to allow, Your Honors, again, a continuation of such really goes into the matter of fair play, Your Honor.

The Presiding Officer. Honorable De Lima, kindly wind up. Again, you were forewarned beforehand to kindly limit your statements. Hence, we are faced again with a similar situation. Kindly wind up, Honorable De Lima, and call your witness.

Representative De Lima. Your Honor, *ang dami pong malalampasan sa aking opening statement because this is supposed to be an overview of the case, the overview of the evidence.*

The Presiding Officer. Yes, but, again, it is the Court's position to let the witness speak, not the Counsel, insofar as the evidence is concerned or conclusions of both fact and law.

Kindly wind up, Honorable De Lima.

Representative De Lima. I submit, Your Honor, and so I will wind up.

Kapag ang isang impeachable officer, tulad ng Pangalawang Pangulo, ay inabuso ang kapangyarihan sa paraang sumisira sa accountability ...

Mr. Poa. Same objection, Your Honor.

Representative De Lima. ...*at sumusuway sa pananagutan, dapat pa ba siyang pagkatiwalaan? Dapat pa ba siyang manatili sa pwesto?*

When the Filipino people entrusted their money to Vice President Sara Duterte, was that trust honored? That question will not be answered by politics, by general denials, by press releases. It should be answered by the witnesses, by the documents, by audit, and by the evidence. And the Prosecution is ready to present it. *Sa kabuuan ng ebidensya makitang hindi lamang mga simpleng irregularidad ang nangyari.*

Mr. Poa. Objection, Your Honor.

Representative De Lima. *Malinaw dito ang sistematikong paraan—*

Mr. Poa. Again, objection, Your Honor.

The Presiding Officer. Honorable De Lima, I would have to stop you at this point. The continuing objection of the Respondent is duly noted. I would have to stop you at this point.

Representative De Lima. And I have to stop now.

The Presiding Officer. My due apologies, but kindly call your witness already.

Representative De Lima. Thank you, Your Honors. I submit. Thank you very much.

PRESENTATION OF FIRST WITNESS

Representative Chua stated that the first Prosecution witness would be Ms. Violeta Constantino.

The Clerk of Court administered the oath to the first witness of the Prosecution.

OFFER OF TESTIMONY BY COUNSEL FOR THE PROSECUTION

Representative Chua made the following offer of the witness's testimony:

Representative Chua. Thank you, Your Honor.

Your Honor, we are offering the testimony of Ms. Violeta Constantino to prove the following:

Una, na si Ms. Constantino ay isang retiradong Department Manager ng Land Bank of the Philippines - Shaw Boulevard Branch mula May 2017 to January 2024.

Pangalawa, na ang Land Bank of the Philippines - Shaw Boulevard Branch ang nagproseso ng encashment ng apat na tseke payable sa isang Gina F. Acosta sa halagang P125 million

each sa mga sumusunod na tseke: una, LANDBANK Check No. 0000244027 na may petsang December 20, 2022; ikalawa, LANDBANK Check No. 0000244053 na may petsang January 31, 2023;

ikatlo, LANDBANK Check No. 0000245511 na may petsang April 18, 2023; at ikaapat, LANDBANK Check No. 0000245664 na may petsang July 13, 2023.

Ikatlo, na ang mga nasabing tseke ay lahat pinondohan ng Philippine Treasury at nilipat sa account ng Office of the Vice President.

Ikaapat, na ang apat na nasabing tseke ay personal na in-encash ng isang Ms. Gina F. Acosta bilang SDO o Special Disbursing Officer ng Office of the Vice President noong December 20, 2022, February 6, 2023, April 25, 2023, at July 14, 2023.

Ikalima, bilang Department Manager ng LANDBANK - Shaw Boulevard Branch, si

Ms. Constantino ay personal na nakasaksi at nag-oversee ng pag-encash at pagtanggap ng pera mula sa tseke ni Ms. Acosta.

At ang panghuli, ikaanim, iba pang mga bagay-bagay na may kinalaman dito sa impeachment case in relation to Article I on Confidential Funds and in relation to the aforementioned purposes, Your Honor.

For comment, Your Honor.



The Presiding Officer. The Honorable Chua, before the comment, what is the third purpose for the offer again?

Representative Chua. Your Honor, that all were funded by the Philippine Treasury and drawn against the account of the Office of the Vice President.

The Presiding Officer. Thank you. Comment from the Counsel for the Respondent?

Mr. Poa. Subject to cross, Your Honor.

Representative Chua. May we proceed now, Your Honor?

The Presiding Officer. You may proceed when you're ready.

DIRECT EXAMINATION OF THE WITNESS

Representative Chua. The witness, *handa na po ba kayo?*

Ms. Constantino. Yes, Sir.

Representative Chua. Madam Witness, *para lang tayo nag-uusap, kaya relax lang po kayo. Bilang preliminary matters, Madam Witness, puwede po ba, kami po ay interesado, ano po ang inyong pangalan at iba pang mga personal na detalye?*

Ms. Constantino. *Ako po si Violeta Constantino, retired employee of the Land Bank of the Philippines.*

Representative Chua. Okay. *Sabi po ninyo, kayo ay retired employee ng Land Bank of the Philippines. Madam Witness, gaano po kayo katagal na nagtrabaho sa Land Bank of the Philippines bilang isang empleyado?*

Ms. Constantino. *Nagtrabaho po ako sa LANDBANK for 32 years na po.*

Representative Chua. Okay. So, *bago po ang inyong retirement, ano po ang inyong naging posisyon sa LANDBANK, kung mayroon man?*

Ms. Constantino. *Ako po ang department manager po sa LANDBANK - Shaw Boulevard branch.*

Representative Chua. Okay. *Sabi ninyo, kayo ay isang department manager ng LANDBANK - Shaw Boulevard. Madam Witness, ano ba ang ibig sabihin ng department manager?*

Ms. Constantino. *Ang department manager po ay kagaya rin po ito ng isang branch manager ng isang bangko po.*

Representative Chua. Okay. So, *parang branch manager din po. Ngayon, bilang department manager, Madam Witness, ang tanong ko po sa inyo: ano po ba ang inyong functions and responsibilities?*

Ms. Constantino. *Ang main function ko po sa—as branch manager, ako po ang nag-oversee sa lahat ng transactions po ng branch, particularly po sa opening ng accounts, deposits, encashments, withdrawals, kasama na rin po dito iyong pagma-market din po, and other administrative functions.*

Representative Chua. Okay. Now, *kanina, Madam Witness, sabi mo kayo ay department manager sa Shaw Boulevard branch. Now, ang tanong ko po: kailan po kayo nagsimula maging department manager ng Shaw Boulevard branch, kailan—hanggang kailan po, kung maalala po ninyo?*

Ms. Constantino. *Nag-start po ako sa LANDBANK - Shaw Boulevard branch noong May 2017, until po noong mag-retire ako noong January 2024.*

Representative Chua. Okay. Now, Madam Witness, *nandirito po ngayon kayo sa Impeachment Court. Ang tanong ko po sa inyo: bakit po kayo nandirito ngayong araw na ito, dito sa Impeachment Court, kung alam po ninyo?*

Ms. Constantino. *Nandito po ako sa araw na ito dahil po naka-receive po ako ng subpoena*

from the Honorable Impeachment Court to testify *po* *iyong* knowledge *ko* regarding *po* *doon* sa impeachment trial *po* *ngayon* ni VP Sara Duterte.

Representative Chua. Okay. Now, Madam Witness, *ano* *naman* *po* *ang* *kinalaman* *ninyo* sa impeachment trial *ni* VP Sara Duterte, *kung* *mayroon* *man* *po*?

Ms. Constantino. *Tungkol* *po* *ito* *sa* *apat* *na* *tseke* *po* *ng* OVP *na* *in-encash* *po* *sa* LANDBANK - Shaw Boulevard *noong* *ako* *po* *ay* branch manager.

Representative Chua. Okay. *Ngayon*, *binanggit* *po* *ninyong* *apat* *na* *tseke*. *Ano* *po* *itong* *apat* *na* *tseke* *ang* *binabanggit* *po* *ninyo*?

Ms. Constantino. *Iyong* *apat* *na* *tseke* *po* *ito* *ay* *nakapangalan* *po* *kay* Ms. Gina F. Acosta *na* *may* *amount* *pong* P125 million each.

Representative Chua. Okay. Madam Witness, *bakit* *naman* *po* *kayo* *pamilyar* *dito* *po* *sa* *apat* *na* *tseke* *na* *binabanggit* *po* *ninyo*?

Ms. Constantino. *Familiar* *po* *ako* *dito* *kasi* *ako* *po* *iyong* *nag-oversee* *ng* *encashment* *na* *ito* *noong* *ako* *po* *ay* branch manager *po* *ng* Shaw Boulevard branch.

Representative Chua. Okay. Now, Madam Witness, *kung* *ipakikita* *po* *sa* *inyo* *itong* *apat* *na* *tseke* *na* *in-encash* *po* *ninyo* *sa* Shaw Boulevard branch, *sa—Kung* *ipakikita* *po* *sa* *inyo*, *itong* *kopyang* *ito*, *ma-i-identify* *po* *ba* *ninyo* *ito*?

Ms. Constantino. *Opo*.

Representative Chua. Madam Witness—

Mr. Poa. Your Honor—

The Presiding Officer. Yes, Counsel for Respondent. What is your pleasure?

Mr. Poa. Just to expedite the proceedings, Your Honor, we are willing to stipulate that the witness has the ability to identify these checks.

Representative Chua. Okay.

The Presiding Officer. ...has the ability to identify the checks.

Mr. Poa. And we are also not questioning the authenticity of such checks, Your Honors.

The Presiding Officer. For the reference of the Senator-Judges, you're referring, Atty. Poa, to the four checks which are common exhibits of both parties.

Mr. Poa. That is correct, Your Honor.

The Presiding Officer. Can we—just to confirm, Clerk of Court is directed to kindly show on the screen the checks being stipulated to and admitted by the Respondent. It should be Exhibit P-I-28 to P-I-28-a-1 for the Prosecution and Exhibit D-I-130 and D-I-130-OVP-1. Is that it?

Mr. Poa. That is correct, Your Honor.

The Presiding Officer. So this is one of the checks.

Mr. Poa. Yes, Your Honor.

The Presiding Officer. Kindly also show the other exhibits that the Respondent is stipulating to so that the Senator-Judges can catch up.

Given that the Respondent has stipulated to the aforementioned checks for P125 million each dated December 20, 2022; January 31, 2023; April 18, 2023; and July 13, 2023, correct?

Mr. Poa. That is correct, Your Honor.

The Presiding Officer. Will you also stipulate, Counsel for the Respondent, that these checks were encashed as well?

Mr. Poa. Yes, Your Honor. From—that—and that these checks were from the Treasury of the Philippines and the payee was Gina Acosta, Your Honor.

The Presiding Officer. So that these checks are authentic, that these checks were encashed by Gina Acosta, that these checks cover the face value of P125 million each, encashed on the dates mentioned by the Respondent, and that it was encashed by Gina Acosta.

Mr. Poa. As SDO, Your Honor.

The Presiding Officer. As SDO. Given that the Counsel for Respondent has stipulated and so admitted these facts, Counsel from the Panel of Prosecutors, kindly proceed with the other items. Given the stipulation by the Counsel for Respondent, there is no need for this witness to testify on these matters anymore. Thank you, Counsel for Respondent.

Representative Chua. Okay. Thank you, Your Honor.

Madam Witness, dahil po 'yung harap ng tseke ay in-admit na po ng ating Defense, pupunta po tayo doon sa ibaba. Mayroon po akong nakikita dito sa screen na image na nakalagay po sa baba at ito po ay—ito po ay nakamarka bilang Exhibit P-I-28-a-1. Madam Witness, ano po itong imahe na nakikita po natin sa ibaba, kung alam po ninyo?

Ms. Constantino. Sir, *puwede po ba akong makahingi ng copy? Medyo malabo po.*

Representative Chua. Your Honor, may we request—

The Presiding Officer. Assisting Counsel is authorized to approach the witness as well as assisting Counsel from the Respondent.

Representative Chua. Okay, Your Honor, my Assisting Counsel, Atty. Ma. Cristina Pasicolan, will approach the witness, Your Honor.

The Presiding Officer. The Clerk is instructed to kindly magnify the submarking being alluded to by the Counsel from the Panel of Prosecutors.

Representative Chua. *Iyong nasa ibaba po na may marka po na binanggit ko pong exhibit.*

Ms. Constantino. *Pakiulit po, please.*

Representative Chua. *Dito po sa tseke, dito po sa screen natin, mayroon pong imahe at mayroon po ditong nakamarkang Exhibit P-I-28-a-1. Ano po itong imahe na ito, kung alam po ninyo?*

Ms. Constantino. *Iyon po bang certified true copy po?*

Representative Chua. *Hindi. Huwag po kayong tumingin dito sa screen, diyan po sa—'yung imahe po, iyan po.*

Ms. Constantino. *Doon po sa isang malaking box?*

Representative Chua. *Iyong malaki, iyong malaki. Ano po iyan?*

Ms. Constantino. *Ito po 'yung mga pirma po ng mga empleyado ko po noong time na na-encash po 'yung tseke.*

Representative Chua. Okay. *Nasaan po iyan? Saang bahagi po ng tseke iyan?*

Ms. Constantino. *Doon po sa three boxes.*

Representative Chua. *Madam Witness, puwede pong pakilapit po sa mic para marinig po tayo. Iyan. Iyan pong imahe diyan po sa ibaba po ng—hindi ba 'yung itaas po, iyan po iyong harap ng tseke. Ano po 'yung imahe na nasa baba? Ano po iyan?*

Ms. Constantino. *Bale po, ito po 'yung "signature verified by" po ang nakalagay. Pirma po ito ng aming verifier.*

Representative Chua. *Saan po nakalagay iyan? Sa may?*

Ms. Constantino. *Sa upper ano po—*

Representative Chua. *Sa dorsal.*

Ms. Constantino. *Iyon pong—*

Representative Chua. *Sa dorsal side ng tseke.*

Ms. Constantino. *Sa likod po ng tseke. Opo. Iyon una pong box.*

Representative Chua. Now, Madam Witness, dito po sa box na ito, mayroon ditong tatlong maliliit na box. Puwede po bang mai-request iyong box na ito na medyo palakihan at i-zoom po? I-zoom po papalapit. Iyan. Puwede po bang pataas? Pataas, paharap? Pa-rotate po, paki-rotate po, paki-rotate. Medyo mahirap pong tingnan, puwede po bang paki-rotate sa tech? Hindi puwede? Ah, hindi puwede. Okay, Madam Witness, hindi daw po pupuwede. Now, Madam Witness, dito po sa box na malaking ito, mayroon po ditong tatlong box na napansin ko. Doon po sa bandang kaliwa na unang box, may nakalagay po ditong "signature verified by." At sa baba po nito, mayroon pong mukhang pirma. Now, Madam Witness, ang tanong ko po sa inyo, kaninong pirma po ito, kung alam po ninyo?

Ms. Constantino. *Ang pirma pong ito ay kay verifier po ng branch.*

Representative Chua. Now, Madam Witness, 'pag pumirma ang verifier dito sa box na ito, sa "signature verified by," ano po ang ibig sabihin nito?

Ms. Constantino. *Ang ibig sabihin po ng signature ng verifier ay na-verify niya po 'yung identity ng payee base po sa kaniyang ID na iprinisenta. At the same time po, na-check n'ya rin po sa system na ito po ay may advice na galing po sa Office of the Vice President na puwede na pong i-release.*

Representative Chua. Okay. Now, pupunta po tayo sa susunod na box na may nakalagay po ditong "posted by." At mayroon din po ditong mukhang pirma. Now, Madam Witness, ang tanong ko po sa inyo, kaninong pirma po itong nakalagay sa "posted by," kung alam po ninyo?

Ms. Constantino. *Ang nakapirma po sa "posted by" ay kay Teller po.*

Representative Chua. Okay. So, Madam Witness, 'pag pumirma ang isang teller dito sa box na ito kung saan nakalagay ay "posted by," ano po ang ibig sabihin ng kaniyang pirma, kung maaalala po ninyo?

Ms. Constantino. *Ang pirma po ni Teller, ang ibig sabihin po nito ay na-encode na po niya sa system ang lahat po ng detalye ng tseke.*

Representative Chua. Okay. Now, pupunta na po tayo sa ikatlong box na may nakalagay pong "approved by" at mayroon din po ditong mukhang pirma. Now, Madam Witness, kanino naman pong pirma ito, kung kilala po ninyo?

Ms. Constantino. *Pirma po ito ng aming approver.*

Representative Chua. Okay. 'Pag pumirma po ang approver dito sa box na ito, ano po ang ibig sabihin ng kaniyang pirma?

Ms. Constantino. *Ang ibig sabihin po ng pirma ng approver ay nakita niya po na ang pagproseso ng pag-verify po sa tseke ay dumaan po sa tamang proseso at ito po ay puwede na pong i-encash.*

Representative Chua. Now, Madam Witness, bakit po kayo pamilyar dito sa tatlong pirma na binanggit po ninyo?

Ms. Constantino. *Sila po iyong aking mga staff noong ako po ay nasa LANDBANK - Shaw Boulevard pa po, ako po iyong branch manager.*

Representative Chua. Now, Madam Witness, ang susunod ko pong tanong sa inyo, kailan po na-encash itong tsekeng ito, kung maaalala po ninyo?

Ms. Constantino. *As shown po dito sa dokumento na ito, ito po ay na-encash noong 20 December 2022.*

Representative Chua. Okay. Now, sabi po ninyo, as shown dito sa record. Ano po bang record ang binabanggit ninyo, Madam Witness?

Ms. Constantino. *Ito po iyong validation ng teller na naka-appear po doon sa ilalim.*

Representative Chua. Now, Madam Witness, *puwede po ba pakituro po sa amin, nasaan po dito sa parteng ito ng dorsal side ng tseke iyong binabanggit po ninyo?*

Ms. Constantino. *Nasa ibaba po, lower right portion.*

Representative Chua. Lower right portion.

Ms. Constantino. *Opo.*

Representative Chua. *Puwede po bang paki-zoom para po mas malinaw at para po mas makita po natin nang maigi.*

Saan po dito? Ano pong nakalagay?

Ms. Constantino. Dec. 20, 2022.

Representative Chua. *Ayan. Okay. Now, Madam Witness, kailan nilagay ang markang ito, kung alam po ninyo?*

Ms. Constantino. *Noong time po ng encashment.*

Representative Chua. *Okay. Now, pupunta na po tayo sa pangalawang dokumento, Madam Witness.*

Ito po ay 'yung Check No. 0000244053 na may petsang January 31, 2023 at payable sa isang, again, Ms. Gina F. Acosta, for P125 million.

Now, Madam Witness, ano po ang relasyon ng tsekeng ito sa mga tsekengbinanggit po ninyo kanina, kung mayroon man po?

Ms. Constantino. *Iyan pong tseke na iyan ay isa po sa mga apat na tseke po na na-encash po ni Ms. Gina F. Acosta noong ako po ay branch manager.*

Representative Chua. *Okay. Madam Witness, hindi ko na po itatanong sa inyo 'yung taas dahil iyon po ay in-admit na at ini-stipulate na po natin. Pupunta po tayo doon sa lower portion kung saan may nakalagay na Exhibit P-I-28-b-1.*

Now, Madam Witness, ano po itong imahe na minarkahan ng nasabing exhibit, kung alam po ninyo?

Ms. Constantino. *Ito po 'yung likod ng tseke po.*

Representative Chua. *Okay. Now, bakit po kayo pamilyar dito po sa tseke na ito, Madam Witness?*

Ms. Constantino. *Ito po iyong in-encash nga po ni Ms. Gina Acosta noong time ko pong manager sa LANDBANK - Shaw.*

Representative Chua. *Okay. Now, Madam Witness, pupunta tayo doon sa malaking box. Puwede po bang paki-zoom in ulit 'yung malaking box? Puwede po paki-ipatayo po?*

Ayan. Now, Madam Witness, kagaya po ng naunang tseke, ito po ay may tatlong boxes doon at nakapaloob po sa malaking box. Doon sa kaliwa, may nakalagay po ditong "signature verified by" at mayroon din pong mukhang pirma. Now, Madam Witness, kaninong pirma po ito, kung maaalala po ninyo at kung kilala po ninyo?

Ms. Constantino. *Gaya po ng sabi ko kanina, ang nakapirma po sa "signature verified by" ang verifier po ng branch.*

Representative Chua. *Okay. Now, Madam Witness, doon naman po sa gitna, mayroon din po ditong pirma na "posted by." Kaninong pirma po ito, kung maaalala po ninyo at kung kilala po ninyo?*

Ms. Constantino. *Sa "posted by" po, si Teller po.*

Representative Chua. *Doon naman po sa parteng nakalagay "approved by," kanino naman pong pirma ito, kung alam po at kung kilala po ninyo?*

Ms. Constantino. *Pirma po iyan ng approver. Akin po iyang initial, signature.*

Representative Chua. *Pirma po ninyo.* Okay. Now, Madam Witness, *bakit po kayo pamilyar doon sa unang dalawang pirma na binabanggit po ninyo?*

Ms. Constantino. *Mga staff ko po siya noong ako po ay branch manager po ng Shaw Boulevard Branch at nawi-witness ko rin po 'yung mga pirma nila sa iba pang mga bank documents.*

Representative Chua. Okay. Now, Madam Witness, *ito pong pangalawang tseke na nakikita po natin, kailan po ito in-encash, kung maaalala po ninyo?*

Ms. Constantino. As shown po dito sa dokumento, ito po ay na-encash noong 06 Feb 2023 po.

Representative Chua. Now, Madam Witness, *nasaang parte dito po sa likod 'yung inyong pinagbabasihan?*

Ms. Constantino. *Nasa lower right po portion.*

Representative Chua. Lower right portion. *Puwede po ba pakituro po ninyo specific, saan po diyan na nakalagay?*

Ms. Constantino. *Iyon po, 06 February 2023.*

Representative Chua. 06 February 2023. Okay.

Now, Madam Witness, *kailan po inilagay ang markang ito, kung alam po ninyo?*

Ms. Constantino. *Noong araw po ng encashment po niya.*

Representative Chua. Okay. Now, Madam Witness, *pupunta na po tayo sa ikatlong tseke.*

The Presiding Officer. With the permission of the Honorable Chua.

Atty. Poa, is this part of what you stipulated or no?

Mr. Poa. Actually—

The Presiding Officer. The verifier's signature, the teller's signature, the approver's signature, as well as the date of encashment.

Mr. Poa. To be candid, Your Honor, it wasn't part. But right now, we are willing to stipulate the same, Your Honor.

The Presiding Officer. So, if you're willing to stipulate, let the Presiding Officer state it for the record that the signature underneath the—on the dorsal side of the check with number 000024—kindly show it to the screen—245511, in the amount of P125 million with the payee as Gina F. Acosta dated April 18, 2023, that the signatures of the verifier, the teller, and the approver are all authentic and genuine and that these were made in the course of their ordinary performance of duties and the date of encashment is April 25, 2023. Correct?

Mr. Poa. That's correct, Your Honor.

The Presiding Officer. And insofar as LANDBANK Check No. 000024—kindly show it to the screen—5664, payable to Gina F. Acosta in the amount of P125 million dated July 13, 2023, the signature of the verifier, teller, and approver on the dorsal side are also all authentic and were signed in the course of the performance of their ordinary duties and that the date of encashment is July 14, 2023. Correct?

Mr. Poa. We stipulate, Your Honor.

The Presiding Officer. So stipulated.

Counsel from the Panel of Prosecutors, the Honorable Chua, given the stipulation, these are now deemed admissions, for the information of the Senator-Judges, and no proof or testimony is necessary to be presented by the Panel of Prosecutors. You may proceed, Honorable Chua.

Representative Chua. Okay. With that, Your Honor, we would like to manifest and state for the record, Your Honor, that the dorsal portion of the said checks were marked, Your Honor, as our Exhibit P-I-28-a-1 for the first check, Your Honor. And for the second check, Your Honor,

Exhibit P-I-28-b-1. And for the third check, Your Honor, Exhibit P-I-28-c-1. And for the fourth check, Your Honor, is Exhibit P-I-28-d-1, Your Honor. For the record, Your Honor.

The Presiding Officer. Duly noted and entered into the records. You may proceed when you're ready.

Representative Chua. Thank you, Your Honor.

Now, Madam Witness, *dito po sa tsekeng ito may nakatatak po dito na "certified true copy of the digital copy on file."* Now, Madam Witness, *puwede po bang malaman namin nasaan po ang original ng tsekeng ito, kung alam po ninyo?*

Ms. Constantino. *Ang original po—original copy po ng mga tseke na ito ay na-shred na po siya.*

Representative Chua. Okay. *Bakit po siya shinred (shred), kung alam po ninyo?*

Ms. Constantino. As per bank policy po, *lahat po ng mga negotiated checks ay may retention period lang po ng one year, kaya ito po ay sine-shred na.*

Representative Chua. Okay. So, *sinasabi po ninyo na ang mga tseke ay sine-shred.* Now, Madam Witness, *'pag sinabi ninyong "shred," ano po ang ibig sabihin ninyo ng salitang o katagang "shred?"*

Ms. Constantino. *Ang meaning po ng shred, ito po ay dumadaan po siya sa machine shredder. So napipira-piraso na po siya nang maliliit.*

Representative Chua. Okay. Now, Madam Witness, *sabi ninyo 'yung physical copy ng mga tsekeng ito ay na-shred na. Ngayon, ano ang relasyon nitong digital copies na ito sa mga tseke na galing sa LANDBANK na binabanggit mong tseke?*

Ms. Constantino. *Ano po ang relasyon?*

Representative Chua. Yes.

Ms. Constantino. *...Ito po iyong mga tseke po na na-encash nga po ni Ms. Gina Acosta.*

Representative Chua. Now, Madam Witness, *pupunta po tayo sa proseso ng encashment ng apat na tseke.*

Okay. Now, Madam Witness, *ano ang proseso ng encashment dito po sa apat na tseke na ito, kung maaalala po ninyo?*

Ms. Constantino. *Ang process po ng encashment namin, particularly ito pong transaction na ito ay malaki po iyong amount involved. So, mayroon pong tumatawag sa amin from Cash Division po ng OVP a day or two prior po doon sa encashment na mayroon po—*

Representative Chua. Okay. *Sige po, tuloy po ninyo.*

Ms. Constantino. *Na mayroon po silang for encashment nga po na P125 million.*

Representative Chua. Okay. Now, Madam Witness, *binanggit ninyo, mayroon sa inyong tumatawag from the Cash Department ng OVP. Now, Madam Witness, ang tanong ko po, sino po ang tumatawag sa inyo from the Cash Department ng OVP, kung maaalala lang po ninyo?*

Ms. Constantino. *Cash Division po iyon ng OVP, si Ms. Queenie Masangkay po.*

Representative Chua. *Queenie Masangkay.*

At sino naman po sa inyong branch ang tinatawagan ni Ms. Queenie Masangkay?

Ms. Constantino. *Ako po ang tinatawagan niya.*

Representative Chua. Okay. Now, Madam Witness, *paano po ninyo nalaman na si Ms. Queenie Masangkay ay from Cash Department ng OVP?*

Ms. Constantino. *Bale siya po iyong liaison ng OVP from the Cash Division at siya rin po iyong tumatawag po sa akin sa other banking needs po nila.*

Representative Chua. Okay. So, Madam Witness, *kanina binanggit ninyo na kaya tumatawag sa inyo si Ms. Queenie Masangkay para i-advise kayo a day or two prior?*

Ms. Constantino. *Opo.*

Representative Chua. *Bakit po kailangan kayong i-advise a day or two prior sa encashment?*

Ms. Constantino. *Bale, mayroon po kasing cash involved limit lang po ang branch. So, wala po kaming any given day na amount po for that much po. Kaya kailangan po namin itong i-request po sa aming Cash Center for assistance.*

Representative Chua. Okay. Now, Madam Witness, *ang tanong ko po sa inyo, pagkatapos po kayong tawagan ni Ms. Queenie Masangkay, ano na po ang susunod na mangyayari, kung mayroon man po?*

Ms. Constantino. *Bale, po kino-communicate ko po sa aming branch cashier na mayroon pong ganitong cash requirement po ang Office of the Vice President, at the same time po para po maka-coordinate po siya sa aming Cash Center for the cash transfer po.*

Representative Chua. So, *pagkatapos po mag-request o mako-coordinate ng inyong cashier, ano na po ang susunod na mangyayari, kung mayroon man po?*

Representative Chua. *Bale po, pagdating na ng cash na ito, tinatawagan ko po si*

Ms. Queenie Masangkay po na available na po iyong cash sa branch.

Representative Chua. Okay. So, *pagkatapos po ninyong tawagan si Ms. Queenie Masangkay, ano na po ang susunod pang mangyayari, kung mayroon man po?*

Ms. Constantino. *Bale, pumupunta na po si Ms. Gina Acosta at si Mr. Ortonio po sa branch para po mag-encash.*

Representative Chua. *Ngayon, binanggit po ninyo ang isang pangalang Ms. Gina Acosta at Mr. Ortonio. Paano po ninyo nakilala si Ms. Acosta at si Mr. Ortuño?*

Ms. Constantino. *Una ko pong nakilala si Mr. Ortonio kasi bale isa po siya sa mga authorized signatories po ng OVP. And then in-introduce niya po si Ms. Gina Acosta na siya po iyong payee ng tseke worth P125 million po.*

Representative Chua. Okay. Now, Madam Witness, *pagpunta po sa inyo ni Ms. Gina Acosta at ni Mr. Ortonio, ano na po ang susunod na mangyayari?*

Ms. Constantino. *Noong first encounter ko po sa kanila, bale po iyong tseke na iyon ay ibinigay po ni Ms. Gina, together with her identification card niya. So, forward (forward) ko po ito sa verifier para po ma-process.*

Representative Chua. So, *pagkatapos po ninyong i-forward sa verifier para ma-process, ano na po ang susunod na nangyari, kung mayroon man po?*

Ms. Constantino. *Bale po, bine-verify po ito ni Verifier iyong mga authorized signatories po ng tseke and then tsine-check niya rin po sa system kung ito po ay mayroon nang advice from the OVP para po ito ay i-release na.*

Representative Chua. Okay. So, *pagkatapos po mai-check kung mayroon ng advice, ano na po ang susunod na mangyayari, kung mayroon man po?*

Ms. Constantino. *Nafoward na po ito sa teller para po i-encode sa system at para po makapag-request na po siya ng cash.*

Representative Chua. Okay. So, *pag-forward sa teller, ano na po ang susunod na mangyayari kung mayroon man po?*

Ms. Constantino. *'Pag po na-approve na rin po ng approver, tatawagin na po niya si*

Ms. Gina Acosta para po mapa-receive niya po iyong cash.

Representative Chua. Okay. So, *sabi ninyo, tatawagin ni Approver si Ms. Gina Acosta para tanggapin na iyong cash?*

Ms. Constantino. *Si Teller po ang tumatawag po.*

Representative Chua. *Okay. Tatawagin ni Teller si Ms. Gina Acosta para—?*

Ms. Constantino. *... Ipa-receive na po iyong cash.*

Representative Chua. *Ipa-receive na iyong cash.*

Ano na po ang susunod na mangyayari pagkatapos pong i-inform ni Teller si Ms. Gina Acosta?

Ms. Constantino. *Bale since malaki din nga po iyong amount, gina-guide po si Gina Acosta papasok po sa backroom para po doon i-release iyong cash.*

Representative Chua. *Okay. Ngayon, may binabanggit po kayong backroom. Sino-sino po ang nasa backroom, kung alam po ninyo?*

Ms. Constantino. *Noon pong unang release po noong cash, ako po ang nandoon, si Teller, iyong branch cashier, si Ms. Gina, and then si Mr. Lemuel Ortoño po.*

Representative Chua. *Okay. So, pagdating ninyo sa backroom, ano na po iyong mga sumunod na pangyayari, kung mayroon man po?*

Ms. Constantino. *Ni-release po ng teller po—after po ma-receive sa tseke po iyong payment received, ni-release na po ni Teller iyong cash kay Ms. Gina in packs po siya worth one million each po.*

Representative Chua. *Okay. So, maalala po ba ninyo kung ilang packs po ang ni-release kay Ms. Gina Acosta?*

Ms. Constantino. *Bale 125 packs po iyon.*

Representative Chua. *One hundred twenty-five packs. Okay.*

Now, pagkatapos pong i-release itong pera in packs, in 125 packs, ano na po ang susunod na mangyayari?

Ms. Constantino. *Bale nilalagay na po nila iyon sa dala po nilang bags.*

Representative Chua. *Okay. Ngayon, mayroon po kayong binanggit na bag. Madam Witness, anong klaseng bag ang pinaglagyan ng pera, kung maalala po ninyo?*

Ms. Constantino. *Sa pagkaalala ko po, isang mahabang malaking bag po siya. Para pong gym bag.*

Representative Chua. *Okay. Madam Witness, ilang bag po ang dala ni Ms. Gina Acosta at ni Mr. Ortoño?*

Ms. Constantino. *Sa pagkaalala ko po, mga three to four bags po iyon.*

Representative Chua. *Okay. Now, Madam Witness, sabi ninyo, nilagay dito iyong P125 million sa three to four bags. Okay. Ano na po ang susunod na mangyayari pagkalagay po nila dito sa bag?*

Ms. Constantino. *Lalabas na po sila ng bangko.*

Representative Chua. *Okay. Madam Witness, si Ms. Gina Acosta lang po ba— o sino-sino— may kasama pa po ba si Ms. Gina Acosta at saka si Lemuel Ortoño?*

Ms. Constantino. *Sa pagkaalala ko po, mayroon po silang kasama.*

Representative Chua. *Ilan po kung maalala po ninyo?*

Ms. Constantino. *Hindi ko na po ma-recall.*

Representative Chua. *Okay. Now, Madam Witness, ang tanong ko po sa inyo, paglabas po nila, mayroon po ba sa bangko na empleyado na tumulong sa kanila para bitbitin po itong bag, kung mayroon man po?*

Ms. Constantino. *Wala po, Sir.*

Representative Chua. *Bakit po wala?*

Ms. Constantino. It's against bank policy po na tumulong po sa mga kliyente ang mga empleyado or even po iyong security guards po namin.

Representative Chua. *Bakit po iyon against sa bank policy, Madam Witness?*

Ms. Constantino. In case po na—for safety and security measures din po, para po hands off na po ang bangko once na ma-release na po iyong physical cash po.

Representative Chua. Okay. Now, Madam Witness, *ito pong huling tanong ko.* How much po in total, Madam Witness, *ang winithdraw* (withdraw) in relation po dito po sa apat na tseke na binabanggit po ninyo?

Ms. Constantino. *Ang total po ng apat na tseke, mga ano po siya, kalahating bilyon po.*

Representative Chua. Okay. That would be all, Your Honor.

The Presiding Officer. Thank you, Honorable Chua.

Cross from the Counsel for Respondent, Attorney Poa, you may proceed when you're ready, Sir.

Mr. Poa. Nothing to cross, Your Honor, from our end. However, Your Honor, may I just make a manifestation, just on the markings, Your Honor.

The Presiding Officer. Counsel may do so.

Mr. Poa. Just on the markings of the check, we'd also like to put on record, Your Honors, that for check with ending 244027 dated December 20, 2022, this is marked by the Prosecution on the face of the check as D-I-130-OVP. On the dorsal portion, it is D-I-130-OVP-1. For the second check dated January 31, 2023, ending with 244053 on the face of the check, this is marked as D-I-131-OVP. Dorsal portion is marked as D-I-131-OVP-1.

For the third check dated April 13, 2023, with ending 245511, face of the check is marked as D-I-132-OVP, while the dorsal portion was marked as D-I-132-OVP-1.

For the fourth and last check, ending 245664 dated July 13, 2023, the face of the check was marked as D-I-133-OVP, while the dorsal portion was marked as D-I-133-OVP-1.

That is all, Your Honors. Again, nothing to cross from our end.

The Presiding Officer. Just to correct you, the check ending in 5511 is dated April 18.

Mr. Poa. Correct, Your Honor, April 18, 2023.

The Presiding Officer. No, you mentioned 13 earlier according to—

Mr. Poa. I stand corrected, Your Honor.

The Presiding Officer. So, it's 18?

Mr. Poa. Yes, 18, Your Honor.

The Presiding Officer. Thank you.

Given that there is no cross and therefore no redirect, we now proceed to allow the Senator-Judges for their interventions in the order that they signified their intent to ask questions and make interventions. The Honorable Erwin Tulfo, thereafter the Honorable Raffy Tulfo, thereafter the Honorable Senator-Judge Aquino.

The Honorable Tulfo (E) is recognized for his interjections and interventions. You have two minutes, Sir.

QUESTIONS OF SENATOR-JUDGE TULFO (E)

Senator-Judge Tulfo (E). Thank you, Mr. Presiding Officer.

Ms. Witness, Ms. Constantino, *diyan ba talaga ang account ng mga OVP sa bangko ninyo sa Shaw, or si VP lang ang nag-open ng account diyan sa bangko ninyo?*

Ms. Constantino. *Iyong Office of the Vice President po.*

Senator-Judge Tulfo (E). *OVP?*

Ms. Constantino. *Opo.*

Senator-Judge Tulfo (E). *So, hindi lahat diyan naka—may account ang OVP?*

Ms. Constantino. *Wala na po akong alam.*

Senator-Judge Tulfo (E). *Oh, okay. Kaya nga po, ang tanong ho natin: si dating VP Robredo po ba, nagbukas din ng account diyan?*

Ms. Constantino. *Actually po, na-transfer lang po sa amin ang MDS account po ng Office of the Vice President noon pong September 2022, noong lumipat po sila ng kanilang office address sa Pioneer, Mandaluyong.*

Senator-Judge Tulfo (E). *Ah, okay. Normal po ba na ganito kalaki ang wini-withdraw ng isang government agency? Is this normal? Nakakita ka na ba nito, ng other government agencies na ganito kalaki ang withdrawal?*

Ms. Constantino. *Wala po. Unusual po ito.*

Senator-Judge Tulfo (E). *Unusual iyong withdrawal?*

Ms. Constantino. *Opo.*

Senator-Judge Tulfo (E). *So, therefore, kung unusual, Madam Witness, hindi ba kayo nagtanong man lang, "Para saan po ba ito?" Kasi ang alam ko, sa bangko po nagtatanong. Ako po, nagbabangko ako sa pribado. Natatanong po iyong staff ko, "Para saan ba gagamitin ni Sir ito, ni Sen?" Hindi na ba ninyo tinatanong?*

Ms. Constantino. *Kasi po may advice naman na po siya. So, kumbaga, dumaan naman po ito sa proseso nila, kaya I don't think po na magtanong pa kami.*

Senator-Judge Tulfo (E). *Pero, what is the SOP? Ano po ang standard operating procedure 'pag may mga malalaking withdrawal? Or exempted 'pag mga government agency lalo po't mga matataas na ahensiya ng pamahalaan?*

Ms. Constantino. *Wala naman pong exemption, kaya lang po itong sa partikular na transaksyon po ng OVP, bale mayroon naman po kasi silang pino-forward na advice po sa branch.*

Senator-Judge Tulfo (E). *Okay. Alam ninyo po ba na ito ay for intelligence fund, iyong wini-withdraw?*

Ms. Constantino. *Hindi po.*

Senator-Judge Tulfo (E). *Hindi ninyo po alam na intel fund ito?*

Ms. Constantino. *Opo.*

Senator-Judge Tulfo (E). *Pero nagduda po kayo sa ganito kalaking halaga. Is that correct?*

Ms. Constantino. *Sa personal opinion namin sa bangko, parang siyempre po, "Saan kaya gagamitin po iyong cash na ito?" So—pero hindi naman po namin tinanong na kasi may advice naman po siya.*

Senator-Judge Tulfo (E). *Okay. Panghuli na lamang po, Madam Witness, may other agencies pa ba na may account sa inyo?*

Ms. Constantino. *Marami naman pong mga government agencies po sa ano—*

Senator-Judge Tulfo (E). *Sa branch ninyo?*

Ms. Constantino. *Sa LANDBANK - Shaw.*

Senator-Judge Tulfo (E). Okay. *Pero walang mga ganitong kalalaking withdrawal?*

Ms. Constantino. So far po kasi, na-convert na po lahat kasi sila sa mga online system, like iyong sa ATM payroll. So, hindi na po ganiyan kalalaki iyong mga withdrawals po nila.

Senator-Judge Tulfo (E). Thank you, Madam Witness.

Thank you, Presiding Officer ...

Presiding Officer. Thank you, Senator-Judge Erwin Tulfo.

Senator-Judge Raffy Tulfo is recognized. You may proceed, Sir, when you are ready for interjections and interventions. You have two minutes, Sir.

QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). Madam Witness, *magandang umaga po.*

Ms. Constantino. *Magandang umaga rin po.*

Senator-Judge Tulfo (R). *Hindi masyadong klaro sa amin iyong sinabi ninyong mga bag ang pinaglagyan nitong P125 million. Anong klaseng bag muli?*

Ms. Constantino. *Sa pagkakaalala ko po, ito po ay isang malaking—mahabang bag na parang dinescribe (describe) ko nga po as gym bag.*

Senator-Judge Tulfo (R). Duffle bag, gym bag?

Ms. Constantino. Gym bag po. *Iba po kasi iyong duffle bag sa bangko.*

Senator-Judge Tulfo (R). So, gym bag, gaano kalaki? Isang dipa?

Ms. Constantino. Mahaba po.

Senator-Judge Tulfo (R). Okay. *Ayon sa BSP, ang P1 million, approximately, one kilo. So, that is P125 million. So, si Gina lamang ang nagbitbit noong 125 kilos palabas ng bangko?*

Ms. Constantino. *Ang alam ko pong assistance na naaalala ko po ay nag-provide po kami ng trolley.*

Senator-Judge Tulfo (R). Ng trolley. *At mag-isa lang si Gina?*

Ms. Constantino. *May kasama po sila. Hindi ko lang po ma-recall.*

Senator-Judge Tulfo (R). So, ilang duffle bag po ulit?

Ms. Constantino. *Mga three to four bags po.*

Senator-Judge Tulfo (R). Three to four? *Iyong sa P125 million?*

Ms. Constantino. Gym bags.

Senator-Judge Tulfo (R). *Dapat sigurado. Tatlo, apat, lima, anim, pito, walo, siyam, sampu? Kasi kung P125 million at tatlong gym bag, ang gym bag ganoon lang kalaki iyon.*

Ms. Constantino. Mahaba.

Senator-Judge Tulfo (R). Mahaba?

Ms. Constantino. Opo.

Senator-Judge Tulfo (R). *Kakasya ba diyan 125 kilos? Baka nagkakamali kayo.*

Ms. Constantino. *Mga three to four bags nga po.*

Senator-Judge Tulfo (R). *Dapat precise po kayo. Dapat jina-jot down ninyo iyan bago paglabas. Three bags ang lumabas, ang pinaglagyan ng—*

Ms. Constantino. *Hindi na po namin iyan ano po.*

Senator-Judge Tulfo (R). Okay, sige. *Pero dapat you should be approximate, I mean, precise,*

kasi we are talking of impeachment of the Vice President dito. Hindi dapat iyong parang kalkulasyon, kalkulasyon lamang. As much as possible.

Ms. Constantino. *Opo, mga ganoon. Four bags.*

Senator-Judge Tulfo (R). Okay. Four bags.

Now, wala bang—kasi ang alam ko 'pag ganoon kalaking amount, kung minsan iyong bangko nag-o-offer doon sa depositor na ide-deliver iyong pera sa lugar na gusto nilang pupuntahan noong perang iyon through the—what we call "armored car" or "armored vehicle." Hindi kayo nag-provide ng ganoon?

Ms. Constantino. *Hindi po. Wala po kasi kaming memorandum of agreement regarding po sa services—cash services po or cash delivery.*

Senator-Judge Tulfo (R). So, *hindi nag-request iyong OVP ng cash delivery through armored vehicle papunta doon sa Office of the Vice President?*

Ms. Constantino. *Wala po.*

Senator-Judge Tulfo (R). Okay. Curious lang ako. *Sino itong—mayroon pa isang pangalan na nakapirma sa baba ng tseke, itong Rosalyn L. Sanchez. Sa pagkakaalam ko kasi, hindi ba, sa baba nakalagay, "Rosalyn Sanchez and then Lemuel Ortoño," signatory doon sa pag-release ng tseke. Who are they?*

Ms. Constantino. Authorized signatory po. *Isa po siya sa authorized signatories po ng Office of the Vice President.*

Senator-Judge Tulfo (R). Si Rosalyn Sanchez, sino po ito sa pagkakaalam ninyo po?

Ms. Constantino. Ang alam ko po, siya po iyong sa Finance.

Senator-Judge Tulfo (R). Sa Finance. Okay.

Nabanggit ninyo rin po prior doon sa withdrawal, you were given one or two days para makapag-prepare ng cash. Sino po ulit tumatawag sa inyo?

Ms. Constantino. Si Ms. Queenie Masangkay po.

Senator-Judge Tulfo (R). Paano n'yo po nalaman na si Ms. Queenie Masangkay iyong tumatawag sa inyo?

Ms. Constantino. Na-meet ko na rin po siya sa branch noong pong nag-open po sila ng MDS account po.

Senator-Judge Tulfo (R). Okay. Last na lamang.

Usually, pag ganoon kalaking amount ang wini-withdraw, sinisiguro ninyo na iyong pupunta doon sa bangko, iyon iyong authorized na mag-withdraw talaga ng perang iyan. Kadalasan tinatawagan pa iyong principal. Wala kayong ganoong klaseng protocol in place?

Ms. Constantino. Wala na po, kasi may advice na po siya.

Senator-Judge Tulfo (R). Wala na? Okay sige. May bell na. Okay. Thank you.

The Presiding Officer. Bago po iyong bell, Senator-Judge Raffy.

Next to be recognized for his interjections would be Senator Bam Aquino. You have two minutes, Sir. You may proceed when you are ready.

QUESTIONS OF SENATOR-JUDGE AQUINO

Senator-Judge Aquino. Maraming salamat, Mr. Presiding Officer.

Ms. Violeta, magandang umaga.

Ms. Constantino. Magandang umaga rin po.

Senator-Judge Aquino. Kaklaruhin ko lang po, iyong tseke ay mula po kanino?

Ms. Constantino. *Mula po sa Office of the Vice President.*

Senator-Judge Aquino. *Hindi po. Diyan po napunta iyong pondo. But kanino—among account galing po iyong perang iyan?*

Ms. Constantino. *Sa Office of the Vice President nga po.*

Senator-Judge Aquino. Ah, because it was already downloaded to the Office of the Vice President from the Treasury. Is that correct?

Ms. Constantino. *Opo. Opo.*

Senator-Judge Aquino. Okay. So, this is OVP funds na napunta kay Ms. Gina Acosta na SDO po nila. Tama po?

Ms. Constantino. *Basta po IMs. Gina, iyong payee po noong tseke.*

Senator-Judge Aquino. *Iyong payee. Okay.*

Nabanggit ninyo po kanina na unusual po iyong laki. Kapag ganoon po, do you report this to any agency kung pinagtatahan ninyo po na parang ang laki naman nito? Do you do any reporting or wala na pong reporting iyan?

Ms. Constantino. I'm sorry, Your Honor, may we invoke po iyong AMLA rule na hindi po kami puwedeng mag-disclose any information po regarding sa reporting.

Senator-Judge Aquino. *Sa reporting?*

Ms. Constantino. *AMLA rules po siya.*

Senator-Judge Aquino. Okay. Let me rephrase the question. Ang government transactions po ba ay sakop ng AMLA rules?

Ms. Constantino. *Makakasagot po niyan ang AMLC po.*

Senator-Judge Aquino. *Hindi, puwede ninyong sabihin hindi ko po alam iyong sagot. Kayo po ay isang branch manager. So, kayo po ay nasa LANDBANK ng ilang taon. Alam ninyo po iyong mga rules. Nais ko lang pong malaman kung ang government transactions ba ay sakop ng AMLA regulations po natin?*

Ms. Constantino. *Wala naman pong exemption po doon.*

Senator-Judge Aquino. *So sakop po siya?*

Ms. Constantino. *Sakop po.*

Senator-Judge Aquino. Okay. So ang sinasabi ninyo po ba sa AMLA rules ay kasama ito sa mga covered or suspicious transactions. Tama po ba?

Ms. Constantino. *Iyon nga po. So, I invoke po na mag-prohibit po ako magsabi po nito.*

Senator-Judge Aquino. Okay. Let me rephrase. I'm sorry, these are, for me, these are simple questions, ano. Regulations lang po ito. So, uulitin ko, sakop ang government transactions sa AMLA regulations, correct? Yes.

Ms. Constantino. *Lahat po.*

Senator-Judge Aquino. Yes. At ano po ba iyong rules natin pagdating sa pagre-report sa AMLA? Above a certain amount? Tama po ba?

Ms. Constantino. *Opo.*

Senator-Judge Aquino. *Opo. Magkano po iyong limit kapag above, what amount po iyan?*

Ms. Constantino. *More than 500,000 po.*

Senator-Judge Aquino. Any amount above 500,000 whether private po o gobyerno, nire-report ninyo po sa AMLA?

Ms. Constantino. *Supposedly po.*

Senator-Judge Aquino. Okay. *Iyan iyong covered o iyan iyong suspicious? Iyong over 500,000, magkaiba po iyon hindi ba?*

Ms. Constantino. Covered po.

Senator-Judge Aquino. Okay. *Iyong suspicious po, ano po iyong regulasyon kapag nagsa-submit po kayo ng suspicious transaction? Ano po iyong batayan bakit ang isang transaksyon ay suspicious?*

Ms. Constantino. *Kung sa tingin po namin ay doubtful po iyong transaction. Pero for this particular po, hindi naman po kami nag-doubt kasi alam naman po namin na legit po iyong transaction.*

Senator-Judge Aquino. Okay. *Kaklaruhin ko, ha. Kanina po sabi ninyo personally mayroon kayong pagdududa pero officially hindi po kayo nag-report na suspicious transaction po ito?*

Ms. Constantino. *Wala po akong sinabing may pagdududa.*

Senator-Judge Aquino. *Kanina sabi ninyo noong nagtanong si Senator Tulfo, sabi ninyo personal...*

Ms. Constantino. *Unusual po ang nasabi ko po.*

Senator-Judge Aquino. Okay. So, *kahit na sa tingin po ninyo unusual ito, hindi ninyo po ito nire-report bilang suspicious transaction?*

Ms. Constantino. *Hindi po puwedeng magsabi po na ano, na nag-report po kami dahil nga po i-invoke po iyong AMLA Law.*

Senator-Judge Aquino. Okay. So covered, definitely, *kasi it's above 500,000. Pero iyong suspicious transaction ayaw ninyo pong sabihin dahil covered po ito ng AMLA Law.*

Ms. Constantino. *Kasi para sa amin naman po ay ano, talagang hindi naman po siya suspicious.*

Senator-Judge Aquino. Okay. *Sige po. Iyon na po muna maraming salamat, Mr. Presiding Officer.*

QUESTIONS OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A). *Magandang umaga, Madam Witness, welcome to the Senate.*

Ms. Constantino. *Magandang umaga po.*

Senator-Judge Cayetano (A). Most of my questions *natanong naman ni Senator Erwin*. I just like to ask, but you are familiar with the concept of confidential or discretionary funds *o hindi? In government parlance?*

Ms. Constantino. *Wala po akong alam.*

Senator-Judge Cayetano (A). Okay. *Kasi kung hindi ka familiar whether that agency has 50 million discretionary funds or let us say if you were the manager sa OP and they had—I don't know how much now, 10 billion, you won't find it unusual kung 500 million, 250, one billion kasi nga usual means parati, unusual means bakit ganito kalaki, ano.* Because when I was in the DFA, there was a big storm and I've never dealt with LANDBANK directly except for my personal account as *sa suweldo ko* as DFA secretary. But the president asked us what can each agency do? So, my staff then si Usec Arriola said, *"Sir, maraming masta-stuck sa mga ports, airport at seaport. May isa tayong fund, kung OFW sila, puwede tayong magbigay."* So, I think we had to withdraw 50 or 100 million *at sinabi noong branch manager, "Wala."* And then it was a Friday. So, I had to call the president of LANDBANK and say, *"Sir, basta stranded hindi."* And then they sent over 50 or 100 million. So, my point is just because it's unusual, it doesn't mean it's illegal or whatever. *Tama po ba?*



Ms. Constantino. *Wala naman pong illegal doon sa encashment po.*

Senator-Judge Cayetano (A). Because *nga may* difference when it's a private account. So, when it's a private account and they don't usually, let's say, someone has a private account, commercial or private, meaning business or personal *niya*, they always withdraw 50,000, 100,000. This is theoretical, huh, so *hindi ito* covered ng Bank Secrecy Law. Suddenly, *magwi*-withdraw ng three million, *minsan nagtatanong, hindi ba?* Dahil know your customer, *hindi ba?*

Ms. Constantino. Yes, sir.

Senator-Judge Cayetano (A). *Ganoon din sa deposit.* I will just finish this line. *Ganoon din sa deposit, hindi ba?* So, *kung suweldo ko 30,000*, every time *nagde-deposit ako 30,000.* *Biglang magde-deposit ako two million, tatanungin ako, "Sir, saan galing ito?"* Right?

Ms. Constantino. Correct.

Senator-Judge Cayetano (A). *Pero pag* government, as long as you are dealing with the people you identified with, so whether that's DPWH, whether that's DOTr, *basta* everything is in order, *magtataka ka lang pag sobrang laki ng amount.* But then you will release it.

Ms. Constantino. *Opo.*

QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. Madam Witness, *iyong 32 years ninyo po na sinabi sa banking industry, iyon po ba lahat ay sa LANDBANK lamang?*

Ms. Constantino. *Opo.*

Senator-Judge Hontiveros. Okay. And then, *sabi ninyo po unusual.* Unusual *iyong* withdrawals *na ito.* *Sa 32 years ninyo po sa banking industry, sa LANDBANK, nakakita na po ba kayo ng ganiyang kalaking amount na withdrawal ever before?*

Ms. Constantino. First time *po.*

Senator-Judge Hontiveros. First time.

Okay. *Sabi ninyo nga kanina unusual iyong amount.* First time *may ganiyang amount na* P125 million. *Bakit ninyo sinabing unusual? Ano iyong floor ninyo para sabihing unusual iyong isang amount?*

Ms. Constantino. Usually *po kasi kaya naging unusual po sa akin kasi cash po siyang kinukuha.* *Sa other naman po is kumbaga nag-i-issue po sila ng mga tseke sa iyong disbursement po nila, by checks po, hindi po cash.*

Senator-Judge Hontiveros. Okay. So, *hindi lang iyong laki ng halaga na 125 million ang unusual, unusual din na iyong ganyang unusual amount ay sa cash kinuha at hindi sa mga tseke.*

Ms. Constantino. *Opo.*

Senator-Judge Hontiveros. Okay. And *iyong 125 million, iyon ba iyong minimum na pag kinuha in cash, sasabihin ninyo unusual? Or mayroon bang lowest amount na kapag kinuha in cash, sasabihin ninyo na rin unusual?*

Ms. Constantino. *Puwede naman po naming sabihin na unusual, let us say, kung over, let us say, 500,000 na po siya.*

Senator-Judge Hontiveros. Over 500,000? *Kung over 500,000 kinuha in cash, sasabihin ninyo unusual?*

Ms. Constantino. For that particular, let us say *po, iyong kliyente, iyong mga ganoon po.*

Senator-Judge Hontiveros. Yes. For the particular client. *Ito, hindi lang 500,000, 125 million.* So, 250 times *mas unusual sa minimum amount na sasabihin ninyong unusual kung kinuha in cash.*

Ms. Constantino. *Depende po rin sa iyong kliyente po.*

Senator-Judge Hontiveros. *Depende sa kliyente. But kung sino mang kliyente aside, nasabi ninyong unusual dahil 125 million na para po sa akin is 250 times iyong 500,000 at hindi po in check kundi in cash po kinuha.*

Ms. Constantino. *Puwede nga po depende po sa depositor po niya. Kung regular lang sa kaniya iyong mga ganoong withdrawals or what, it is usual. Pero kung parang for the first time ma-encounter namin that much, unusual po sa amin.*

Senator-Judge Hontiveros. And this was your first time.

Ms. Constantino. *Opo.*

Senator-Judge Hontiveros. And in your 32 years, higit tatlong dekada, kung masasabi nating pambihirang amount ito in cash.

Ms. Constantino. *Opo.*

Senator-Judge Hontiveros. Masasabi nating once in a lifetime iyong ganitong amount in cash.

Ms. Constantino. *Puwede po.*

QUESTIONS OF SENATOR JUDGE VILLANUEVA

Senator-Judge Villanueva. Madam Witness, binanggit ninyo po iyong unusual and gusto kong susugan iyong katanungan. Iyong usual, below 500,000 pag individual.

Pero kung ito ay government agency, paano ninyo masasabi na ito ay unusual?

Ms. Constantino. Any depositor naman po kung hindi naman po ganoon frequent silang nagwi-withdraw ng ganoong kalaking cash, kaya po na-ano ko siyang unusual.

Kung ganito po na apat na beses nag-withdraw ng 125 million, would you say usual na siya?

Ms. Constantino. Unusual nga po, kasi—

Senator-Judge Villanueva. No, kung apat na sunod-sunod na, iyong binanggit po ninyo, 125 million, sunod-sunod, nagiging usual na po ba siya o unusual pa rin?

Ms. Constantino. *Puwede naman po, usual.*

Senator-Judge Villanueva. What is it?

Ms. Constantino. *Kung sunod-sunod naman po, magiging ano na po siya, talagang usual transaction na po iyon.*

Senator-Judge Villanueva. So kung ganoon nga po na apat na sunod-sunod, usual transaction na siya?

Ms. Constantino. *Opo.*

Senator-Judge Villanueva. Madam Witness, as I understand iyong process, DBM would provide the funding, Notice of Cash Allocation, and then the agency authorizes the disbursement. At kayo ho, for example, sa inyong bangko, sa LANDBANK, bine-verify ninyo lang at you pay the corresponding instruments. Is that correct?

Ms. Constantino. *Opo. Bine-verify po iyong pag-issue ng tseke po, iyong mga signatories, payees, like that po.*

Senator-Judge Villanueva. So bago po inilabas ang salapi o iyong pera, ano-ano pong dokumento iyong aktuwal na natatanggap po ninyo at inyong masusing sinusuri? Kasi sabi ninyo nga ho, I am sure from the first withdrawal, as you made mention, it is unusual, so ano ho iyong mga talagang sinusuri po ninyo na dokumento bago ninyo i-release ito?

Ms. Constantino. Supported naman po ito ng advice. So once po nakapasok na po sa system at funded naman po siya, okay na po sa amin iyon.

Senator-Judge Villanueva. So iyon lang po iyong inyong tsine-check?

Ms. Constantino. *Opo.*

Senator-Judge Villanueva. And that's it, you release it right away?

Ms. Constantino. Yes sir.

Senator-Judge Villanueva. And binanggit ninyo ho kanina, hindi ito suspicious.

Ms. Constantino. Para sa ano ko po, hindi po siya suspicious.

Senator-Judge Villanueva. At lahat po ay legitimate.

Ms. Constantino. Yes sir.

Senator-Judge Villanueva. One last question that I would like to ask, with this amount of money that will be withdrawn by the payee, *ano ho iyong mga advance arrangements? Kasi sabi ninyo nga ho, hindi usual iyong biglaan, 125 million. Ano iyong mga advance arrangements na hinihingi po ninyo o tinatawag po sa inyo bago mailabas po itong salapi na ito?* How far in advance was LANDBANK informed that these amounts of physical cash would be required for each transaction?

Ms. Constantino. Mga a day or two po ini-inform po kami from the cash division po ng OVP na mayroon po silang ganoong cash requirement. So sa amin naman po, pino-process naman po namin iyong requirements nila bago po namin sila i-advise na available na po iyong cash.

Senator-Judge Villanueva. Within 24 hours, kaya na po?

Ms. Constantino. Puwede naman po.

Senator-Judge Villanueva. Salamat po. Maraming salamat.

QUESTIONS OF SENATE PRESIDENT GATCHALIAN

The Senate President. Good morning, Ms. Constantino. *Sundan ko lang po iyong natanong kanina ni Senator Risa. So, in your 32 years in LANDBANK, hindi pa ho kayo nakakita ng withdrawal na ganito kalaking amount, 125 million, tama po ba?*

Ms. Constantino. *Opo.* Yes po.

The Senate President. *Ano iyong pinakamalaking nakita ninyo na withdrawal, in cash?*

Ms. Constantino. *Hindi ko na po ma-recall.*

The Senate President. More or less lang, mabigyan ninyo kami.

Ms. Constantino. In cash?

The Senate President. In cash. *Iyong pinakamalaking nakita ninyo na o na-experience ninyo na in your 32 years.*

Ms. Constantino. Mga 500,000 po.

The Senate President. Five hundred thousand. And next, *ito na, 125 million?*

Ms. Constantino. Yes, Sir.

The Senate President. Ang Shaw Boulevard, maraming negosyo diyan, so I assume maraming mga private companies diyan. May nakita na ba kayong cash withdrawal from a private company na ganito kalaki, in the hundreds of millions?

Ms. Constantino. Mostly po, mga tseke po iyong ini-issue nila.

The Senate President. Tseke?

Ms. Constantino. *Opo.*

The Senate President. Mayroon bang mga cash withdrawal din sa private companies?

Ms. Constantino. Wala po.

The Senate President. *Wala. Puro ...*

Ms. Constantino. Checks.

The Senate President. *...tseke lang ang ini-issue nila.*

Ms. Constantino. And then *nabanggit* ninyo *kanina* na *apat na beses* pumunta sila

Ms. Acosta *at si* Mr. Or...

Ms. Constantino. Ortonio.

The Senate President. ... Ortonio *sa inyo?*

Ms. Constantino. *Opo.*

The Senate President. *Tama po ba, apat na beses?*

Ms. Constantino. Yes sir.

The Senate President. *Noong nagwi-withdraw sila, mayroon ba kayong any casual talk kung saan gagamitin itong mga perang ito? Kasi sabi ninyo nga kanina unusual, ngayon lang kayo nakakita. Hindi ba nagkaroon kayo ng kaunting parang casual talk sa pangatlo o pang-apat na pagkita ninyo kung saan gagamitin itong perang ito?*

Ms. Constantino. *Hindi ko na po mare-recall, Your Honor.*

The Senate President. I'm sure *nag-uusap kayo, hindi ba?*

Ms. Constantino. Yes. Brief talk.

The Senate President. Brief talk. *Mayroon bang nasabi kung saan gagamitin itong perang ito?*

Ms. Constantino. *Hindi ko na nga po maalaala. Sorry po.*

The Senate President. *Hindi ninyo na maalaala. Okay.*

And then *kanina* nasa *tanong* rin ni Senator Bam. Typically, *inire-report ito sa AMLC* iyong mga *ganitong kalaking amount*. *Nai-report ninyo na ba? Nai-report ninyo ito? Hindi iyon detalye. Ang tanong lang naman kung na-report iyong ganitong kalaking cash withdrawal sa AMLC?*

Ms. Constantino. *Ang alam ko po ang LANDBANK naman po ay compliant po sila when it comes to reporting po.*

The Senate President. So *nare-report siya?*

Ms. Constantino. *Compliant po kami doon.*

QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. Thank you. *Magandang umaga.*

Ms. Constantino. *Magandang umaga po.*

Senator-Judge Pangilinan. *Unang-una, si Gina Acosta kilala ninyong bilang special disbursing officer. Tama?*

Ms. Constantino. As payee *po ng tseke.*

Senator-Judge Pangilinan. *Hindi bilang special disbursing officer.*

Ms. Constantino. *Hindi po.*

Senator-Judge Pangilinan. *Kung siya ang payee at sinabi ninyo iba ang tumatawag sa inyo na two days in advance, hindi ba? Sino iyong sinabi ninyong tumatawag?*

Ms. Constantino. *Si Ms. Queenie Masangkay po.*

Senator-Judge Pangilinan. Ms. Masangkay.

Ms. Constatino. *Opo.*

Senator-Judge Pangilinan. *Bakit iba ang—would you know if you know, bakit iba iyong payee, iba iyong tumatawag?*

Ms. Constatino. *Wala po akong idea kasi it's under the agency po kung sino po ang gusto nilang gawing payee po.*

Senator-Judge Pangilinan. *Pero bakit si Masangkay ay kilala mo? Nagpakilala siya?*

Did you meet each other?

Ms. Constatino. *Na-meet ko po siya kasi po noong bago po sila mag-open ng account po sa amin, so nag-visit po sila sa branch.*

Senator-Judge Pangilinan. *Okay, so you knew her personally and therefore siya ang tumatawag pero ang payee ay si Gina Acosta.*

Ms. Constatino. *Ms. Gina.*

Senator-Judge Pangilinan. *In other accounts would you know or would you have experienced na ganoon din? Iba iyong payee, iba iyong tumatawag? I suppose yes, ano?*

Ms. Constatino. *Wala po akong idea.*

Senator-Judge Pangilinan. *Okay. Okay.*

Doon sa nabanggit ninyong first time ang ganiyang kalaking halaga kaya sabi ninyo unusual, mayroon pa bang ibang ahensiya? Tama bang sabihin, walang ibang ahensiya ng pamahalaan ang naglalabas ng ganiyang kalaking pera sa inyong accounts, sa inyong branch dahil kayo ay depository, government bank, hindi ba?

Ms. Constatino. *Wala na po akong ma-recall kasi nga po kagaya ng sabi ko kanina, lahat po ay na-convert na po sila sa mga online transactions.*

Senator-Judge Pangilinan. *And most government agencies would use checks.*

Ms. Constatino. *Checks or online transactions po.*

Senator-Judge Pangilinan. *Or online transactions. Okay.*

And sinabi ninyo ang average na cash transactions sa inyong withdrawals, apart from iyong 125 million na cash, iyong average is about 500,000. Tama? Iyong average amount ng cash?

Ms. Constatino. *Puwede po or lower than that. Kung cash po. Opo.*

Senator-Judge Pangilinan. *Yes. Yes. So, malaki iyong agwat, ano?*

Senator-Judge Pangilinan. *And that is why you say it's unusual.*

Ms. Constatino. *Yes, sir.*

Senator-Judge Pangilinan. *Okay. I have no other questions, Mr. Presiding Officer. Just to manifest that earlier, the witness said that she is bound by the confidentiality rule under the AMLA law. But we take exception to that but I understand that we will be tackling this matter in another article. We will not concede that you cannot disclose this information, this being the Impeachment Court. But it being, dahil ito ay ita-tackle sa ibang articles of impeachment we will not pursue it this time. Is it Article II? Then we will not insist and we will not push the issue at this time.*

The Presiding Officer. *Noted. But Chair would also like to place on the record that while indeed the court issued a subpoena vis-a-vis the AMLC, the provision of the law on the confidentiality with respect to bank officers are indeed provided for in the AMLC. That bank officers are those authorized to report both suspicious transactions and those exceeding 500,000 but are not allowed to disclose whether or not they report. And thank you, Ms. Constantino, for being very cooperative and, at the same time, prudent with respect to your answers regarding the AMLC provision dahil kayo po ay madedemanda kung saka-sakali, hindi naman po kami.*

QUESTIONS OF SENATOR-JUDGE MARCOS

Senator-Judge Marcos. Thank you very much, President Judge. And it's a very simple question, by way of information to the prosecution. During the Blue Ribbon Committee, a certain Jean Abaya was called as a resource person. She was then the operations head of Land Bank Shaw and assumed the position of department manager thereafter. I understand, of course, that the prosecution has the right to choose your witnesses. I am simply curious: *bakit hindi pinatawag si Ms. Abaya na magtestigo ngayon, samantalang siya iyong may personal knowledge ng encashment noong mga tseke na pinag-uusapan?*

Rep. Chua. Your Honor—

The Presiding Officer. The Honorable Chua, may I respond?

Rep. Chua. Thank you, Your Honor. Your Honor, at that time, when this check was encashed, *si Ma'am po— ang atin pong testigo, siya po ang branch manager, hindi po si— iyong nabanggit po ninyo.*

Senator-Judge Marcos. Yes, *alam ko na siya iyong branch manager, pero iyong operations head at that time, ay si Jean Abaya.* As a matter of fact, she was even able to say that the

entire amount of the checks was withdrawn each encashment. So *ang lumalabas doon sa House hearing, kung naaalala ko nang maigi, si Ms. Abaya ang direktang nakipag-deal kay Ms. Acosta, hindi ba?*

Rep. Chua. Your Honor, *kung maririnig po natin iyong kanyang salaysay, siya po kasi iyong nakikipag-coordinate sa OVP.*

Senator-Judge Marcos. *Siya iyong nakikipag-coordinate? Or sino ang direktang nakikipag-usap kay Ms. Abaya, kung ganoon? Kay Ms. Acosta, sorry, hindi ba si Jean Abaya?*

Ms. Constantino. *Puwede po akong sumagot?*

Senator-Judge Marcos. *Iyon ang pagkaintindi ko doon sa House hearing, eh.*

Ms. Constantino. *Puwede po akong sumagot?*

Senator-Judge Marcos. Yes, please.

Ms. Constantino. *Si Jean Abaya po, siya po iyong next in rank noong ako po ay branch manager.*

Senator-Judge Marcos. *Siya iyong—Sorry.*

Ms. Constantino. Next in my rank.

Senator-Judge Marcos. *Oo, yes.*

Ms. Constantino. *Opo.*

Senator-Judge Marcos. *Pero siya ba iyong direktang nakipag-deal kay Ms. Acosta ng DepEd?*

Ms. Constantino. *Ako po ang direktang— Sa OVP po.*

Senator-Judge Marcos. *Nakakapagtaka lang kung bakit noong House hearing, si Ms. Abaya ang siyang nagsabi nang direktahan na iyong entire amount ng tseke was withdrawn each encashment, hindi po kayo. Bakit nagka-ganoon?*

Ms. Constantino. Your Honor, *bale po, si Jean Abaya po ang naging incumbent manager. Siya po iyong pumalit sa akin as branch manager. So at that time, tinanong po nga siya. So since operations manager po siya, aware din po siya sa transaction. Pero natanong din po siya kung sino ang direktang kumakausap sa cash division staff.*

Senator-Judge Marcos. Okay.

Ms. Constantino. *So kaya po ako napatawag.*

Senator-Judge Marcos. *Kayo iyong direktang nakipag-usap?*

Ms. Constantino. *Opo.*

Senator-Judge Marcos. *Kahit siya ang nag-attest na talagang buong amount ang winidro?*

Ms. Constantino. *Aware naman po siya sa mga transactions dito po sa branch.*

Senator-Judge Marcos. *Okay. Maliban doon, Ms. Constantino, noong House Blue Ribbon, narinig ko noong tinanong ni Congressman Luistro sino ang nag-withdraw ng pera at nilagay sa mga bag. Noong una, sabi ninyo, "You didn't recall." Matapos noon, medyo may leading question si Congresswoman noon, eh. Kasi ang sabi, "Do you recall—Ms. Acosta, do you recall Mr. Ortoño?" Bigla ninyong naalala si Ms. Acosta at si Mr. Ortoño. Tama ba iyon? Bakit nagkaganoon? Noong una, hindi ninyo maalala. Pagkatapos noon, naalala na ninyo.*

Ms. Constantino. *Puwede ko po bang—*

Senator-Judge Marcos. *Ano ba talaga ang naaalala ninyo? Para klaro tayo.*

Ms. Constantino. *Puwede po ba nating balikan po kung iyong transcript po talaga? Kasi baka po mamaya, may—baka lang po, I'm sorry, may iba pong issue before, tapos po natanong ako kung bakit ko po kilala iyong dalawa. So baka po may iba pa pong story behind—*

Senator-Judge Marcos. *Kasi noong una, tinatanong, kung nare-recall ninyo sino ang naglagay noong pera sa mga bag. Sabi po ninyo na hindi ninyo maalala. Tama ba iyon?*

Ms. Constantino. *Ang pagkakaalala ko po—*

The Presiding Officer. *Kindly wind up, Senator-Judge Marcos.*

Ms. Constantino. *Ang pagkakaalala ko—sorry po. Ang pagkakaalala ko po, ang sinagot ko po iyon na si Ms. Jean ang naglagay, o si Mr. Ortoño. Ang hindi ko po ma-recall kung sino po iyong naglabas na ng cash—ng bag.*

Senator-Judge Marcos. *Hindi ko tinatanong iyon. Hindi iyon ang tinutukoy ko. Ang tinutukoy ko, iyong paiba-ibang sagot. Kasi noong una sabi ninyo hindi ninyo maalaala kung sino naglagay noong pera sa bag. Pagkatapos noong binanggit sa inyo, "Do you recall*

Ms. Acosta, do you recall Mr. Ortonio?" — naalaala ninyo kung sino naglagay na iyong dalawa. Bakit ganoon? Iyon lang po.

The Senate President. *Kindly wind up, ma'am.*

Ms. Constantino. *Ang pagkakaalala ko—sige po.*

Senator-Judge Marcos. *Considering that Ms. Acosta is allegedly the payee, bakit hindi ninyo iyon naalaala kaagad? Doon ako nagtataka.*

Ms. Constantino. *Wala po akong matandaan na sinabi ko—na hindi ko ma-recall po iyong naglagay ng pera sa bags. Ang alam ko po, nare-recall ko kung sino po ang naglabas ng bags outside the box.*

Senator-Judge Marcos. *Okay. Balikan na lang po natin iyong transcript doon sa Lower House...*

Ms. Constantino. *Kung puwede po.*

Senator-Judge Marcos. *... at baka maipaliwanag ninyo sa amin nang maigi. Maraming salamat.*

QUESTIONS OF SENATOR-JUDGE LACSON

Senator-Judge Lacson. *Thank you, Mr. Presiding Officer. Hindi po ako magtatanong. I will only make a manifestation. I'm only wondering why neither the prosecution nor the defense is presenting a competent witness in the handling of intelligence and confidential fund. Kasi po, in my previous life, sa intelligence, sa law enforcement, ang natatandaan ko kasi limited iyong purpose ng intelligence at saka confidential fund. Nagtataka lang ako, nakita ko iyong regularity ng withdrawals ng cash parang every quarter except for December, December 20.*

So sana para ma-educate kami at saka magkaroon kami ng informed decision later on, sana mayroon tayong competent witness sa pag-handle ng intelligence fund or confidential fund, para nang sa ganoon naman ma-appreciate namin at matanong din namin sarili namin, regular ba iyong every quarter? Kasi January, April, tapos July, hindi ba? Parang regular eh. Ang alam ko pagka may pangangailangan dahil mayroong intelligence gathering operation, may confidential activities, saka pa lang mangangailangan ng pera. So iyon lang, Mr. Presiding Officer.

The defense may also respond or comment, so with the prosecution. Thank you.

The Presiding Officer. We will recognize both sides but recognize first to respond to the inquiry or the manifestation rather of Senator-Judge Lacson.

The Honorable Chua, you may proceed, sir.

Representative Chua. Thank you, Your Honor.

Your Honor, we will be presenting our witness *pero hindi po siya iyong tetestigo po pagdating po diyan*. In time *po*, we will be presenting witness or witnesses that will explain *iyong manner po ng confidential...*

Senator-Judge Lacson. Kasi I asked my staff, *wala po sa listahan ng testigo na mayroon tayong competent witness*. So *saan nanggaling iyong sinasabi ninyo may ipe-present kayo?*

Representative Chua. *Iyong COA po*. They will be the one that...

Senator-Judge Lacson. COA is not a competent witness *sa pag-handle ng intelligence and confidential fund*. Somebody who might be a retired intelligence officer, you know, somebody like that *na maalam mag-handle*. Nagtataka lang ako bakit masyadong regular tapos *iyong una pa natapat pa na magpapasko*.

Representative Chua. Your Honor, *may ipe-present po kami pero kung makikita po ninyo doon sa aming pre-trial brief, mayroon po doong reservation*.

Senator-Judge Lacson. Thank you.

The Presiding Officer. Confidential *pa daw, po*.

The Honorable—Atty. Poa rather is recognized for your comment to the manifestation of Senator Lacson. You may proceed, sir.

Mr. Poa. Thank you, Mr. Presiding Officer. Same comment actually with the prosecution, Your Honors. *Mayroon din po kasing tayong mga reservation*. So we will present when we feel necessary, Your Honors.

The Presiding Officer. *Sa ngayon nga confidential pa din iyong witness ninyo*.

QUESTIONS OF SENATOR-JUDGE TULFO (E)

Senator-Judge Tulfo (E). Thank you, Mr. Presiding Officer. Ms. Witness, *ito pong transaksyon na 125, four times po yata ito, tama po ba?*

Ms. Constantino. *Tama po*.

Senator-Judge Tulfo (E). All right. *Hindi po ninyo na-report ito sa AMLC?*

Ms. Constantino. *Gaya po ng sabi ko po na-invoke ko po iyong AMLA rule prohibiting us to disclose po any information regarding—*

Senator-Judge Tulfo (E). No. I'm not saying *na* you have to disclose to us, *pero* I'm saying *kailangan po bang i-report ito?*

Kasi, ma'am, ayon po sa AMLA law natin, covered po ang lahat po ng government transactions ng government agencies. Tama po ba? Do you agree to that?

Ms. Constantino. Yes *po*.

Senator-Judge Tulfo (E). *At saka another thing, ito po ba ay ang transaksyon na ito ay nasa ilalim ng List of Due and Demandable Accounts Payable (LDDAP), at saka mayroon po ba itong Advice to Debit Account (ADA)?*

Ms. Constantino. *Mayroon po silang advice na nai-issue po diyan.*

Senator-Judge Tulfo (E). *Okay. Pero nasa ilalim po ba ito ng LDDAP, iyong List of Due and Demandable Accounts Payable?*

Ms. Constantino. *I think agency na po ang puwedeng sumagot po regarding this.*

Senator-Judge Tulfo (E). *Okay. All right. That's all, Mr. Presiding Officer.*

QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. *Salamat po, Mr. Presiding Officer. Madam Witness, iyong unusual pa rin bago ibang tanong. Sinabi ninyo kanina sa prosecution, may cash involved limit. Magkano po iyong cash involved limit?*

Ms. Constantino. *Sa branch po namin?*

Senator-Judge Hontiveros. *Sa branch ninyo.*

Ms. Constantino. *Puwedeng hindi ko po sagutin po iyan for security?*

Senator-Judge Hontiveros. *All right. Then hindi ko itatanong iyong follow-up question doon. Ito na lang, sabi po ninyo, wala ang branch ninyo ng ganyang amount. Kung puwede ninyong sabihin, magkano po ang halaga na mayroon ang branch ninyo?*

Ms. Constantino. *Malaki po kasing amount. So in any given day po kasi, talagang wala po kami sa branch. So puwede ko po, in average, kung ano lang po iyong sa tingin namin na kasya po during the operational transactions po ng branch for the day.*

Senator-Judge Hontiveros. *Magkano po iyong average na iyon sa branch ninyo, transactions for the day.*

Ms. Constantino. *For us mga ano po—maybe mga—sorry po, mga 20M po.*

Senator-Judge Hontiveros. *Twenty M. So itong P125 million ay times six po doon sa average na transaksyon sa branch ninyo in a given day.*

Ms. Constantino. *Opo.*

Senator-Judge Hontiveros. *Okay. And then sabi ninyo rin po kanina sa prosecution, kailangang tawagan ang Cash Center ninyo para i-transact iyong amount. Magkano po iyong floor ulit na halaga para kailangan ninyong tawagan ang Cash Center ninyo?*

Ms. Constantino. *Any cash requirements naman po ay tinatawag namin sa Cash Center po namin for assistance.*

Senator-Judge Hontiveros. *Okay. Would you say anything above P20 million, kailangan kayong tumawag sa Cash Center?*

Ms. Constantino. *Kahit po less than, basta po requirement po namin sa branch for that day sa daily operations po namin.*

Senator-Judge Hontiveros. *And iyong P125 million na iyon ay lampas sa kaya ng branch ninyo in that day?*

Ms. Constantino. *Opo.*

Senator-Judge Hontiveros. *Okay. Kaya unusual ang sinabi ninyo kanina sa prosecution.*

Ms. Constantino. *Opo.*

Senator-Judge Hontiveros. *Okay po. In total, kalahating bilyong piso in cash ang winidro ng Office of the Vice President sa branch ninyo. Sa experience ninyo po, karaniwan rin po bang mag-withdraw ang isang ahensya ng ganyang halaga, kalahating bilyong piso in cash, sa loob lamang ng walong buwan?*

Ms. Constantino. *Hindi ko po iyon masasagot kasi iyong agency po maybe ang dapat pong sumagot about it.*

Senator-Judge Hontiveros. *Pero para sa branch po ninyo, naranasan ninyo na po ba in the higit tatlong dekadang nagtrabaho kayo sa LANDBANK na mayroon alinmang ahensyang nag-withdraw ng ganyang halaga, kalahating bilyong piso in cash sa loob lamang ng less than three quarters of a year?*

Ms. Constantino. *Wala po akong ma-recall kasi mostly nga po ang sabi ko ay puro through online or ang transactions na po nila or tseke.*

Senator-Judge Hontiveros. *Okay. At bilang branch manager, sinigurado ninyo po ba na otorisado talaga ni vice president iyong pag-withdraw ng kalahating bilyong piso?*

Ms. Constantino. *Mayroon naman po kasi silang inisyung advice. So, binase naman po natin iyong tseke na inisyu kay Ms. Gina Acosta na ito po ay may advice na po and funded.*

Senator-Judge Hontiveros. *All right. So batay doon sa issue advice ni Ms. Gina Acosta, iyon na iyong pagtitiyak ninyo na otorisado ni VP iyong pag-withdraw nitong kalahating bilyong piso in cash.*

Ms. Constantino. *Opo.*

QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). *Madam witness, how are government agency accounts being opened sa LANDBANK? Ano ang proseso po?*

Ms. Constantino. *Pakiulit po, sir.*

Senator-Judge Tulfo (R). *Ano po iyong proseso para iyong isang government agency ay makapag-open ng account sa Landbank?*

Ms. Constantino. *Mayroon pong request na galing po sa kanila, at the same time po, mayroon din pong approval from the Bureau of Treasury na mag-open po sila ng account sa amin. So once approved na po ito ay ma-o-open na po iyong account sa LANDBANK.*

Senator-Judge Tulfo (R). *Very good. Now, sa kaso po ng OVP, sino po iyong nag-open ng account? Sino po iyong pumunta sa bangko ninyo para i-open iyong account ng OVP?*

Ms. Constantino. *Ang alam ko po nag-inquire po iyong head po ng agency.*

Senator-Judge Tulfo (R). *Huwag pong "alam ko," dapat sino po talaga? Sigurado dapat kayo.*

Ms. Constantino. *Iyong head po ng cash division.*

Senator-Judge Tulfo (R). *Nila?*

Ms. Constantino. *Opo.*

Senator-Judge Tulfo (R). *Okay. Ano po iyong mga pinresentang dokumento para magpapatunay na sila po ay authorized talaga na mag-open ng account on behalf of the OVP?*

Ms. Constantino. *Gaya po ng sinabi ko nga po kanina, iyong pong request nila na mag-open ng account, at the same time, iyong approval po ng Bureau of Treasury na sila po ay allowed po mag-open ng account sa amin.*

Senator-Judge Tulfo (R). *I don't know kung na-answer ninyo po iyong question kanina. Sino po iyong personal na pumunta doon para magpresenta na "Ako ay from OVP at nagpakita ng mga dokumento at ako iyong authorized person to represent the OVP for this account?"*

Ms. Constantino. *Iyong head po ng cash division po ng OVP.*

Senator-Judge Tulfo (R). *And what is her name again? Ano ang pangalan niya po?*

Ms. Constantino. *Hindi ko na po ma-recall iyong head po. Iyong isa po kasi, staff niya po iyon, si Miss Queenie.*

Senator-Judge Tulfo (R). Okay. So pagdating niya po doon sa bangko, mayroon po siyang siguradong, I mean, sigurado akong binabanggit na mga taong point person na para pumunta sa bangko para mag-withdraw at sino ang mga signatories, etcetera, etcetera. Tama?

Ms. Constantino. Pakiulit po ang tanong, Your Honor.

Senator-Judge Tulfo (R). Kasi po iyong sa cash division, hindi mo na maalala ang pangalan ng tao ulit?

Ms. Constantino. Iyong head ng cash division, hindi ko na po ma-recall.

Senator-Judge Tulfo (R). Okay, sige. Iyong head ng cash division pumunta doon, nag-open ng account. Doon nagkakaroon agad ng arrangement para sabihin sa inyo na ang puwede lang mag-withdraw ay si ganito at kasama si ganito.

Ms. Constantino. Wala pong ganoong arrangement.

Senator-Judge Tulfo (R). Wala?

Ms. Constantino. Wala pong ganoon.

Senator-Judge Tulfo (R). Dapat mayroong arrangement para malaman ninyo kung sino iyong point person ng OVP para tumawag sa inyo at sino iyong nag-de-designate ng point person to coordinate from the OVP to LANDBANK?

Ms. Constantino. I'm sorry po, ang pagkaintindi ko po kung sino po iyong inisyuhan nila ng tseke, ganoon po ba?

Senator-Judge Tulfo (R). No, sino iyong taong nagsasabi sa LANDBANK na "Ito lamang ang recognized namin na tumawag at the day of the withdrawal, at ito lamang ang puwedeng pumirma sa tseke, etcetera, etcetera"? There has to be one person.

Ms. Constantino. As to authorized signatories po, aware naman po iyong agency kung sino po iyong mga authorized na pumirma. Ngayon po, kung sino po—

Senator-Judge Tulfo (R). No, no, no. Sorry. You are listening, but you are not hearing me.

Sino po iyong tao na nagsabi sa LANDBANK na "Hey, LANDBANK, ito lamang mga tao ang puwedeng kumontak sa inyo, ang puwedeng mag-withdraw.(period)" Sino iyon?

Ms. Constantino. Ang pagkakaalam ko po, sina Asec Ortonio po saka po sina—

Senator-Judge Tulfo (R). Sina Asec.

Ms. Constantino. Opo, sila po, sila po kasi iyong officers po ng OVP.

Senator-Judge Tulfo (R). Did they go personally to LANDBANK or through telephone lamang?

Ms. Constantino. Sa pagkakaalala ko po, mayroon po silang written ano po, written communication po sa amin.

Senator-Judge Tulfo (R). So how did you know na sila talaga iyong nasa written communication?

Ms. Constantino. Nagpe-present po sila ng mga IDs nila.

Senator-Judge Tulfo (R). So, they went to LANDBANK personally?

Ms. Constantino. Yes.

Senator-Judge Tulfo (R). And then they presented documents to prove that they are that person?

Ms. Constantino. Opo.

Senator-Judge Tulfo (R). And then—

Ms. Constantino. Sorry po. Puwede pong mag-butt in?

Senator-Judge Tulfo (R). Go ahead, ma'am.

Ms. Constantino. *Bale po doon sa pagkakaalala ko po, sa ibinigay nilang dokumento, mayroon na rin pong photocopy ng mga IDs po nila.*

Senator-Judge Tulfo (R). Thank you. Thank you, Madam Witness.

QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. Thank you.

Iyong tseke na winidro o iniharap sa inyo, December 20, 2022, tama ang date?

Ms. Constantino. *Opo, opo.* December 20, 2022.

Senator-Judge Pangilinan. *Kinuha iyong pera on the same day, December 20?*

Ms. Constantino. *Opo.*

Senator-Judge Pangilinan. *Sabi ninyo kanina, unusual iyong malaking halaga, unusual din—o usual ba iyon? Iyong ganoong halaga, same day naka-date, same day din iwi-withdraw, ganoon?*

Ms. Constantino. *Bale nga po, nag—*

Senator-Judge Pangilinan. *Mabilis ba iyon?*

Ms. Constantino. *May prior notice po sila, ang agency, na mayroon silang—magkakaroon po sila ng ganoong encashment. So as to the...*

Senator-Judge Pangilinan. Two days before?

Ms. Constantino. *Opo.*

Senator-Judge Pangilinan. Okay.

Ms. Constantino. *So iyon pong December naman po kasi, puwede naman po nilang gawin iyon on the same day. Kasi po pag December, mayroong regulation naman po ang Bureau of Treasury, kapag po December, hindi na po natin siya hinihintay ang 24 hours to 48 hours na ano po na grace period.*

Senator-Judge Pangilinan. Yes. But if you combine both, the huge amount, which is unusual, and the same day dated check and the same day withdrawal, is that usual?

Ms. Constantino. *Sa tingin ko naman po, usual naman po siya.*

Senator-Judge Pangilinan. So, the only thing unusual is that it is a huge amount, which you've never experienced in your 38 years?

Ms. Constantino. Yes, Your Honor.

Senator-Judge Pangilinan. Okay. And—so tinatawag sa iyo two days before, kahit hindi pa handa iyong tseke, in other words?

Ms. Constantino. *Hindi ko na lang po alam sa side nila.*

Senator-Judge Pangilinan. *Oo, kasi two days...*

Ms. Constantino. *Opo.*

Senator-Judge Pangilinan. ...two days before—oh, yeah, pero posible na two days before, December 18, 17, hindi pa nahahanda iyong tseke pero ihahanda nila, ino-notify na kayo.

Ms. Constantino. *Opo.*

Senator-Judge Pangilinan. Okay. Maraming salamat. Thank you.

The Presiding Officer. Thank you, Senator-Judge Pangilinan.

If there are no other interventions and interjections from the Senator-Judges, the presiding officer would like to excuse you already, Ma'am Violeta Constantino.

Ms. Constantino. Thank you, Your Honor.

MANIFESTATION OF SENATOR-JUDGE PANGILINAN

Regarding the non-disclosure of covered transactions, Senator-Judge Pangilinan stated that while covered institutions such as banks are prohibited from disclosing AMLA-related records, the Anti-Money Laundering Council itself is not subject to the same confidentiality rule.

The Presiding Officer confirmed that this position had already been adopted by the Court and was reflected in its ruling.

SUSPENSION OF TRIAL

With the permission of the Body, trial was suspended for a lunch break.

It was 11:44 a.m.

RESUMPTION OF TRIAL

At 12:32 p.m., the trial was resumed.

PRESENTATION OF THE PROSECUTION'S WITNESS

Upon resumption, the Presiding Officer instructed the Counsel for the Prosecution, Representative Chua, to call the next witness to the witness stand.

Representative Chua stated that the next witness for the Prosecution would be Nenita Camposano, retired employee and former Department Manager of Land Bank of the Philippines - DepEd Branch.

The Clerk of Court administered the oath to the witness, Nenita Camposano.

OFFER OF TESTIMONY BY COUNSEL FOR THE PROSECUTION

In offering the testimony of Nenita Camposano, Representative Chua delivered the following statement:

Your Honor, we are offering the testimony of Ms. Nenita Camposano to prove the following:

- No. 1 — *Na si Ms. Nenita Camposano ay isang retiradong empleyado ng LANDBANK department branch from May 2022 to September 2024;*
- No. 2 — *Na si Ms. Nenita Camposano ay dating Department Manager ng Land Bank of the Philippines - DepEd Branch;*
- No. 3 — *Na ang Land Bank of the Philippines DepEd Branch ang nagproseso ng encashment ng tatlong tseke na nagkakahalaga ng P37.5 million bawat isa. Ang lahat ay pinasok sa account ng Department of Education with the following checks details:*
 - *Una, LANDBANK Check No. 0000000453 dated February 20, 2023 at payable sa isang Mr. Edward D. Fajarda for 37.5 million.*
 - *Pangalawa, LANDBANK Check No. 0000000964 dated April 19, 2023, payable again sa isang Mr. Edward D. Fajarda for P37.5 million.*
 - *Ikatlo, LANDBANK Check No. 0000002250 dated July 11, 2023, payable sa isang Mr. Edward D. Fajarda for P37.5 million.*
 - *Ika-apat, na ang mga nasabing check, Your Honor, ay personal na in-encash ni Mr. Edward Fajarda bilang special disbursing officer ng Department of Education noong February 22, 2023, April 26, 2023 at July 13, 2023.*

- *Ika-lima, bilang department manager ng LANDBANK - DepEd Branch, si Ms. Camposano ay personal na nakasaksi at nag-oversee ng pag-encash at pagtanggap ng pera mula sa tseke ni Mr. Fajarda.*
- *Ika-anim. Iba pang mga bagay-bagay na may kinalaman at mahalaga dito sa impeachment case na may kaugnayan sa Article I on confidential funds at may relasyon sa mga nabanggit na dahilan.*

COMMENTS OF THE COUNSEL FOR THE RESPONDENT

Counsel for the Respondent, Attorney Poa, manifested that, for purposes of expediency, the defense was willing to stipulate on the checks, including the details appearing on their face, such as the dates, payee, and signatures, as well as the dorsal portions, and that the checks were verified, processed through the teller, and approved.

As to the witness's qualification, Attorney Poa likewise stipulated to the witness's qualifications and her ability to identify the checks.

INSTRUCTION OF THE PRESIDING OFFICER

The Presiding Officer directed that the details of the checks be flashed on screen for the information of the Senator-Judges and to confirm the matters stipulated by Counsel for the Respondent.

He identified the following checks: LANDBANK Check No. 0000000453, payable to Edward D. Fajarda in the amount of P37.5 million, dated February 20, 2023, and encashed on February 22, 2023; LANDBANK Check No. 00000000964, payable to Edward D. Fajarda in the amount of P37.5 million, dated April 19, 2023, and encashed on April 26, 2023; and LANDBANK Check No. 000000002250, payable to Edward D. Fajarda in the amount of P37.5 million, dated July 11, 2023, and encashed on July 13, 2023.

The Presiding Officer further stated that Counsel for the Respondent stipulated to the authenticity and due execution of the checks, all details appearing on their face and dorsal portions, the verification by responsible bank officers as to the payee and disbursement of the amounts, and the stamps appearing on the dorsal portions. He noted that the checks were common exhibits of both parties and identified the corresponding exhibit markings: P-I-28-e to P-I-28-e-1, P-I-28-f to P-I-28-f-1, and P-I-28-g to P-I-28-g-1 for the Prosecution; and D-I-112-DE to D-I-112-DE-1 for Check No. 00000000453, D-I-113-DE to D-I-113-DE-1 for Check No. 00000000964, and D-I-114-DE to D-I-114-DE-1 for Check No. 000000002250 for the Respondent.

Representative Chua proposed an additional stipulation that the three LANDBANK checks were funded by the Philippine Treasury for the account of the Department of Education, Office of the Secretary. Attorney Poa agreed to the stipulation, which was noted by the Presiding Officer.

DIRECT EXAMINATION OF THE WITNESS

Counsel for the Prosecution, Representative Chua, made the following direct examination of the witness:

Representative Chua. Now, Madam Witness, *pupunta tayo sa proseso ng encashment ng tseke. Now, Madam Witness, puwede bang malaman namin ano ang proseso ng encashment ng tatlong tseke na nabanggit po kanina, kung maaalala po ninyo.*

Ms. Camposano. *Pare-parehas naman po ang proseso doon sa tatlong tseke. So, ang una po ay tatawag po sa amin ang cash division ng DepEd para magpa-reserve ng pera.*

Representative Chua. Okay. Now, Madam Witness, *sabi mo tatawag sa inyo ang cash division ng DepEd.*

Ms. Camposano. Yes, sir.

Representative Chua. Now, *ang tanong ko po: sino sa cash division ng DepEd ang tumatawag po sa inyo?*

Ms. Camposano. *Ang tumatawag po sa akin ay si Ms. Sonia De Leon po, ang chief admin po ng cash division ng Department of Education.*

Representative Chua. Sonia.

The Presiding Officer. With the permission of Representative Chua, can you pronounce the name more distinctly, ma'am? *Ano pong pangalan? Sonia?*

Ms. Camposano. Sonia De Leon.

The Presiding Officer. De Leon?

Ms. Camposano. Yes, sir. Yes, Your Honor.

The Presiding Officer. D-E L-E-O-N?

Ms. Camposano. Yes, Your Honor.

The Presiding Officer. You may proceed, Representative Chua.

Representative Chua. Thank you, Your Honor.

So, sabi mo, tatawag sa "inyo." Sinong sa "inyo"?

Ms. Camposano. *Sa akin po.*

Representative Chua. Okay. Now, Madam Witness, *puwede ba naming malaman paano mo nakilala itong si Ms. Sonia De Leon ng cash division ng DepEd?*

Ms. Camposano. *Siya po ang head ng cash division ng DepEd at siya rin po ang palagi naming nakakausap regarding sa mga transactions po ng DepEd.*

Representative Chua. Okay. *Bakit kinakailangang tumawag ni Ms. Sonia De Leon sa inyo po?*

Ms. Camposano. Regarding sa encashment po?

Representative Chua. Yes. *Bakit kailangan niyang tumawag? Ano ang dahilan?*

Ms. Camposano. *Kasi po wala naman po kaming enough cash para doon sa mga tseke na na-mention kaya kailangan po niyang tumawag para ireserba po namin iyon.*

Representative Chua. Okay. So, *sabi ninyo, kaya siya kailangang tumawag dahil kinakailangang ireserba ninyo.*

Ms. Camposano. Yes, sir.

Representative Chua. So, ngayon, *pagkatapos po tumawag ni Ms. Sonia De Leon sa inyo, ano na po ang susunod na mangyayari?*

Ms. Camposano. *Pagkatawag po ni Mam Sonia ay ire-relay ko na po iyong cash requirement nila sa kahera ko para po siya ang mag-request sa cash center po ng LANDBANK.*

Representative Chua. Okay. So, *pagkatapos pong tumawag ng kahera ninyo sa cash center ng LANDBANK, ano na po ang susunod na mangyayari kung mayroon man po?*

Ms. Camposano. *Pagka naitawag na po iyon and dumating na iyong pera, tatawagan na rin po namin si Mam Sonia para sabihin na available na iyong pera.*

Representative Chua. Okay. So, Madam Witness, *paki-clarify nga, magkakano po ba iyong cash requirement na tinutukoy po ninyo na may kaugnayan dito sa tseke na pinag-uusapan natin?*

Ms. Camposano. *Ang amount po kasi noong tseke is 37.5. So, nasa ganoon din halos iyong amount noong ire-request po ng kahera sa cash center namin.*

Representative Chua. Okay. So, *sabi mo, tatawag iyong—abisuhan ninyo iyong cash center.*

Ms. Camposano. Yes, sir.

Representative Chua. *Pagkatapos—ano na po ang nangyari pagkatapos?*

Ms. Camposano. *Ni-request na po iyon ng kahera. So, the following day, darating na po iyon at tatawagan na rin po namin sila Mam Sonia na dumating na iyong pera, available na iyong pera for encashment.*

Representative Chua. Okay. Now, *pagkatapos po ninyong tawagan si Ms. Sonia, ano na po ang susunod na mangyayari?*

Ms. Camposano. *Darating na po iyong payee ng tseke, si Mr. Fajarda, at ie-encash na po niya iyong tseke.*

Representative Chua. Okay. So, Madam Witness, *puwede po ba ipaliwanag ninyo sa amin ano ang unang proseso na ginagawa ni Mr. Fajarda pagpunta po sa inyo sa pag-e-encash ng tseke?*

Ms. Camposano. *Iyong tseke po plus ID niya ay ibibigay po sa verifier para po i-verify iyon. 'Pag na-verify na po iyon, ibibigay sa teller for encoding, for validation, posting, ganiyan, and then tatawagin din po ang officer for the approval.*

Representative Chua. Okay. So, *kanina, binanggit po ninyo iyong pangalan ni Mr. Edward Fajarda. Paano naman po ninyo nakilala si Mr. Edward Fajarda?*

Ms. Camposano. *Siya po iyong payee ng tseke.*

Representative Chua. *So bukod po sa pagiging payee ng tseke ano pa po ang experience ninyo paano po ninyo nakilala si Mr. Fajarda?*

Ms. Camposano. *Doon lang po sa mga prinisent (present) niyang identification.*

Representative Chua. Okay. So *kailan po iyong unang pagkakataon na nakilala o nakita ninyo si Mr. Edward Fajarda?*

Ms. Camposano. *Noong pong encashment noong first check noong February.*

Representative Chua. Okay. Now, Madam Witness, *so pagkatapos, napirmahan na iyong dulong dulo, sabi po ninyo na-approve na, napirmahan na, ano na po iyong susunod na mangyayari, kung mayroon man po?*

Ms. Camposano. *Pagka po natapos na po iyong proseso namin ng pag-validate ng tseke at pag-approve, tatawagin na po namin si Mr. Fajarda sa backroom. So, doon po i-re-release na po iyong cash withdrawal, iyong cash encashment.*

Representative Chua. Okay. *Doon sa backroom, Madam Witness, sino-sino mga nandodoon, kung maaalala po ninyo?*

Ms. Camposano. *Ang nandoon po ay ako, iyong teller na mag-re-release ng pera, iyong kahera po, si Mr. Fajarda, pagkatapos may isa pa po siyang kasama.*

Representative Chua. Okay. *Ngayon, sabi mo may kasama pa si Mr. Fajarda.*

Ms. Camposano. Yes, Sir.

Representative Chua. *Sino itong kasama niya, kung kilala po ninyo?*

Ms. Camposano. *Hindi ko na po siya kilala, sir.*

Representative Chua. Okay. Now, Madam Witness, *sabi ninyo i-re-release sa backroom iyong pera.*

Ms. Camposano. Yes, sir.

Representative Chua. Okay. So *pagkatapos pong i-release ng teller ano na po ang susunod na mangyayari, kung alam po ninyo?*

Ms. Camposano. *Ilalagay na po iyan ni Mr. Fajarda sa dala niyang bag, and then lalabas na po sila doon sa may fire exit sa may back door po namin.*

Representative Chua. Okay. So, *sabi ninyo may dala si Mr. Fajarda na bag. Anong klaseng bag ba ito, kung maaalala mo?*

Ms. Camposano. *Hindi ko na siya actually ma-recall, Sir. Basta may dalang bag.*

Representative Chua. So, *ilang bag ang dala ni Mr. Fajarda, kung maaalala po ninyo?*

Ms. Camposano. *Ang recall ko po ay dalawang bag.*

Representative Chua. *Dalawang bag. Okay.*

Now, Madam Witness, *mayroon ba sa mga empleyado ng inyong bangko ang tumulong o nag-assist kay Mr. Fajarda at sa kasama niya papalabas sa bangko?*

Ms. Camposano. *Wala po, sir.*

Representative Chua. *Bakit po wala?*

Ms. Camposano. *May policy po tayo na pagka nakuha na po ng kliyente ang pera, hands off na po ang bangko.*

Representative Chua. *Bakit po ganito ang polisiya ninyo?*

Ms. Camposano. *Para sa safety din po ng mga empleyado na parang last touch na. Kung ano man po ang mangyari doon sa pera after hawakan ng kliyente, hindi na po namin sagot iyon.*

Representative Chua. Okay. Now, Madam Witness, *kanina binabanggit ninyo lumabas sila sa backroom.*

Ms. Camposano. Yes, Sir.

Representative Chua. Okay. *Pag sinabi ninyong backroom, puwede po ba paki-describe po ninyo saan po itong backroom na itong binabanggit po ninyo?*

Ms. Camposano. *Iyong backroom po ng LANDBANK DepEd branch ay sa may likod—sa may likod po ng teller, sa may likod po.*

Representative Chua. Okay. *So doon po sila nag-withdraw ng pera at doon din sila lumabas?*

Ms. Camposano. Yes, sir, *sa may fire exit.*

Representative Chua. *Ang ibig po ninyong sabihin mayroon pong pinto doon sa backroom papalabas?*

Ms. Camposano. Yes, sir.

Representative Chua. Okay. Now, Madam Witness, *paglabas po nila dito po sa back exit na sinasabi po ninyo, mayroon pa po ba silang kasama na sumalubong sa kanila, kung alam po ninyo?*

Ms. Camposano. *Paglabas po nila doon sa may back door, sa may fire exit, hindi na po namin sila nakikita, sir.*

Representative Chua. Okay. Now, Madam Witness, *kanina sinasabi ninyo itong tatlong tseke na binabanggit po natin. Now, magkakano po iyong totality nito, nitong tatlong tseke na pinag-uusapan po natin?*

Ms. Camposano. *Tatlong ano po iyan, tatlong 37.5. So, mga ano po, 112.5 million.*

Representative Chua. Okay. No further question, Your Honor.

The Presiding Officer. Finished with direct.

CROSS EXAMINATION OF THE WITNESS

Counsel for the Respondent, Atty. Poa, made the following cross-examination of the witness:

Mr. Poa. Your Honor, just one or two questions for cross.

The Presiding Officer. You may proceed, sir, with your cross-examination.



Mr. Poa. Thank you, Your Honor.

Madam Witness, *kanina po kayo po ay nakapagsabi na lumabas po sa fire exit sa backroom.*

Ms. Camposano. Yes, sir.

Mr. Poa. *Lumabas po siya sa fire exit dahil po ang LANDBANK ay actually nakadikit sa DepEd compound, hindi po ba?*

Ms. Camposano. Yes, sir.

Mr. Poa. *At lumabas po siya doon para po sa kaniyang safety siguro, at hindi na po lumabas sa publiko pa dahil nasa loob na po ang DepEd ng—*

Representative Chua. Objection, Your Honor, incompetent.

The Presiding Officer. If she knows. Witness may answer.

Mr. Poa. Only if you know, Madam Witness.

Ms. Camposano. The question, again, Sir?

Mr. Poa. *Lumabas po siya sa fire exit dahil safer po iyon, dahil nasa loob na po siya ng DepEd, tama po ba?*

Ms. Camposano. Yes, Sir.

Mr. Poa. No further questions, Your Honor.

The Presiding Officer. Redirect?

Representative Chua. No redirect, Your Honor.

The Presiding Officer. Any Senator-Judge who wish to intervene or make interjections? Senator-Judge Kiko Pangilinan; thereafter, Senator-Judge Risa Hontiveros; thereafter, Senator-Judge Imee Marcos; thereafter, Senator-Judge Joel Villanueva.

You may proceed Senator-Judge Pangilinan. You have two minutes.

QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. Thank you.

Ms. Witness, sa iyong naging karanasan bilang bank manager at government agencies ang tina-transact, gaya nang natanong namin kanina ng ilang mga senador, normal ba iyong pagwi-withdraw ng P37 million cash sa inyong branch?

Ms. Camposano. With LANDBANK DepEd po, for government agencies, *ano siya, unusual po ang amount ng pag-withdraw.*

Senator-Judge Pangilinan. So, unusual.

Ms. Camposano. Yes, Sir.

Senator-Judge Pangilinan. *At unusual dahil ano ang usual na masasabing transaction for government agencies?*

Ms. Camposano. For DepEd, Sir?

Senator-Judge Pangilinan. Yes.

Ms. Camposano. For DepEd, *parang nagre-range lang ng mga nasa, I'm not sure masyado, Sir, pero parang mga 10, mga nasa ganoon lamang.*

Senator-Judge Pangilinan. Ten million cash?

Ms. Camposano. Yes, Sir.

Senator-Judge Pangilinan. Okay, so *iyong 37* is almost four times more than the usual?

Ms. Camposano. Yes, Sir.

Senator-Judge Pangilinan. And other government agencies, *ganoon din ba*, 10 million o mas mababa?

Ms. Camposano. With LANDBANK DepEd po si—

Senator-Judge Pangilinan. No, no, other government agencies. Yes, in LANDBANK DepEd branch.

Ms. Camposano. With LANDBANK DepEd, si DepEd lang naman po kasi ang aming government agensing (agency) hawak.

Senator-Judge Pangilinan. Okay. Iyong P37 million—ilang years ka na sa—

Ms. Camposano. Thirty-four years.

Senator-Judge Pangilinan. So, in your 34 years, was this the first time you had to deal with P37 million cash three times in a period of three quarters?

Ms. Camposano. With other government agencies?

Senator-Judge Pangilinan. With the DepEd.

Ms. Camposano. With the DepEd, no, Sir. Parang—ngayon lang po iyong ano, time na may encashment na ganoon kalaki.

Senator-Judge Pangilinan. So, this is the first time for you to experience that kind of cash transaction.

Ms. Camposano. Yes, Your Honor.

Senator-Judge Pangilinan. Okay. And not in the DepEd—you were also manager in other LANDBANK branches?

Ms. Camposano. Yes, Sir.

Senator-Judge Pangilinan. So, in other LANDBANK branches when you were the manager, would you say the same that walang ganiyang kalaking mga transaction ang ibang mga government agencies involving cash?

Ms. Camposano. Mayroon naman po.

Senator-Judge Pangilinan. So, which government agencies would this be?

Ms. Camposano. Your Honor, baka may violation ako ng Bank Secrecy Law, if I mention?

Senator-Judge Pangilinan. Okay. Well, hindi siguro pero hindi mo naman babanggitin iyong amounts at iyong bank account number, just the agency. And I'm not asking for specific amount, just which agencies may have transacted in a huge amount.

Ms. Camposano. I really can't.

Senator-Judge Pangilinan. Well, suffice it to say that what you are saying is, in your previous experience, it has happened, pero dito sa DepEd, it has never happened in DepEd LANDBANK?

Ms. Camposano. Yes, Sir.

Senator-Judge Pangilinan. Okay. Wala na po akong ibang tanong. Maraming salamat.

The Presiding Officer. Thank you, Senator-Judge Kiko.

Senator-Judge Risa Hontiveros is recognized for her interjections. You may proceed, Ma'am, when you are ready. You have two minutes.

QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. Salamat po, Mr. Presiding Officer.

Madam Witness, sabi ninyo nga unusual na makapag-withdraw ng P37.5 million in cash sa isang araw at karaniwan ay P10 million. So, halos isang ka-apat lang noong halagang iyon. Ano po iyong naisip ninyo noong winidrow (withdraw) nila iyong ganiyang kalaking halaga?



Ms. Camposano. *Wala naman po, wala naman.*

Senator-Judge Hontiveros. *At sinabi po ba nila sa inyo kung para saan iyang P37.5 million in cash na iyon?*

Ms. Camposano. No, Your Honor.

Senator-Judge Hontiveros. *Hindi rin. Okay. So, noong 2023, P112.5 million po ang ni-release ng inyong branch sa Department of Education na pinamunuan noon ni Bise Presidente. At binanggit ninyo po kanina, dalawang bag each time, each of those three times ang ginamit. Naaalala ninyo po ba kung gaano kalaki iyong mga bag na iyon?*

Ms. Camposano. *Hindi po. Para lang, parang dalawang bags pero I am not sure.*

Senator-Judge Hontiveros. *At bilang branch manager po, paano ninyo sinigurado na aprubado ni Vice President Sara na Secretary noon, paano ninyo siniguradong aprubado niya iyong mga transaksyong iyon na ganoong halaga at in cash sa bawat araw, tatlong beses?*

Ms. Camposano. As approved ni VP Sara po ang transactions?

Senator-Judge Hontiveros. Yes, paano ninyo sinigurado iyon?

Ms. Camposano. *Dumaan po kasi iyan sa ano, sa DBM. DBM, approved ng DBM po iyan. Na-release po ang pondo ni BTr. Mayroon po iyang advice and pirmado po ng mga authorized signatories ng DepEd.*

Senator-Judge Hontiveros. *Okay. So, dumaan sa DBM hanggang makarating po sa inyo iyong mga tseke. Ganoong halaga, in cash, ini-encash nga po and then inilalabas sa branch ninyo sa tig-dalawang bag. Pero nananatili iyong impression ninyo na unusual iyong ganiyang kalaking halaga na P37.5 million, at in cash, hindi po in checks.*

Ms. Camposano. Unusual iyong 37.5 po.

Senator-Judge Hontiveros. *So, nananatiling para sa inyo, unusual iyong halagang P37.5 million dahil halos times four noong usual na sinabi ninyong P10 million at most.*

Ms. Camposano. Yes, Ma'am.

Senator-Judge Hontiveros. All right. *Salamat po, Madam Witness. Salamat po, Mr. Presiding Officer.*

The Presiding Officer. Thank you, Honorable Hontiveros.

Senator-Judge Marcos is recognized for your interjection; thereafter, Senator-Judge Villanueva; thereafter, the Senate President; and thereafter, Senator-Judge Raffy Tulfo. You may proceed when you're ready, Ma'am. You have two minutes.

QUESTIONS OF SENATOR-JUDGE MARCOS

Senator-Judge Marcos. Yes. Just clarifying po, Ms. Camposano. You mentioned doon sa House Blue Ribbon, *tinitingnan ko nga iyong transcript at kanina nabanggit ninyo na unusual for government agencies including iyong DepEd na mag-withdraw ng malalaking halagang katulad nito. Pero doon sa Blue Ribbon, sinabi po ninyo na, "not only private clients but government clients go to your branch."* So, *pinaliwanag po ninyo. Tama po? Tapos nag-testify rin kayo noong tinanong kayo ni Congresswoman Garin, "Is this a regular occurrence?" Ang sabi po ninyo, "Yes, Ma'am."* So, *ibig sabihin, hindi siya unusual, regular occurrence. Alin po ba? Kasi later on, sinabi din ninyo, nabasa ko lang sa transcript, "Not DepEd only, but with all of our clients." Anong tinutukoy po ninyo doon? Kasi nakakalito kung unusual ba ito or regular katulad na nabanggit ninyo sa House.*

Representative Chua. With due respect, Your Honor. Your Honor, may I be recognized?

The Presiding Officer. What is the pleasure of the Honorable Chua?

Representative Chua. Your Honor, we would just like to request for the TSN so that our witness will be confronted with the TSN that is being mentioned by the Honorable Imee Marcos.

The Presiding Officer. If she remembers, by the way, Senator-Judge Marcos, it's the Senate—it's the House Good Government Committee, not the Blue Ribbon Committee.

Senator-Judge Marcos. Yes. This is the Good Government Committee of the House. I believe it was in November of 2024. Similar to what was mentioned earlier with Ms. Constantino. In her case, I had the hard copy, page 122 on November 26 of 2024. I only have the soft copy of this one. I'm happy to show it but, *iyon nga, palagay ko November din ito. Magkakasabay iyong LANDBANK noon.*

The Presiding Officer. If the witness knows and recalls, she may answer.

Senator-Judge Marcos. *Naaalala po ba ninyo iyong pagtanong ni Congresswoman Garin tungkol dito na, "Is this a regular occurrence?" at iyong biglaan ninyong sagot ay "Yes, Ma'am."*

Ms. Camposano. *Kung iyan po iyong sinasabing normal, the usual lamang po ang pagwi-withdraw ng malalaking amount sa branch—*

Senator-Judge Marcos. Yes. *Ang verbatim po, "and is this a regular occurrence, Ma'am? Ito ba ay pangkaraniwan na pangyayari itong 37.5 o iyong malaking amount na ini-encash?" Ang sagot ni Ms. Camposano sa House Good Government, "Yes, Ma'am."*

So ang sabi ni Representative Garin, "So pangkaraniwan pala ito."

Ayun.

Ms. Camposano. Yes, Your Honor.

Senator-Judge Marcos. *Nais ninyong ipaliwanag ho? Kasi iba ito kaysa sa sinabi ninyo kanina.*

Ms. Camposano. *Ang sinasabi ko po noon sa House ay ang malalaking withdrawal po ay usual lang. Hindi siya unusual sa branch. Both private and government, nagwi-withdraw po siya. May mga malaki pong withdrawals.*

Senator-Judge Marcos. *So may malalaki talagang withdrawal na nagiging regular occurrence at paminsan-minsan, whether private or public, iyan ang ginagawa sa branch po ninyo. Kaya nga lang, hihingi kayo ng cash allotment kasi hindi naman kayo ...*

Ms. Camposano. Yes.

Senator-Judge Marcos. ... *nagtatago ng ganoong kalaki sa branch.*

Ms. Camposano. Yes, Your Honor.

Senator-Judge Marcos. *Tama po.*

Ms. Camposano. *Opo.*

Senator-Judge Marcos. So regular po, not unusual. *Tama po ba?*

Ms. Camposano. Not usual—unusual siya sa Department of Education dahil during my time, *iyon lang po iyong malaking withdrawal ni Department of Education.*

Senator-Judge Marcos. Yes, okay. *Pero nangyayari po.*

Maraming salamat. Iyon lang po.

The Presiding Officer. Thank you, Senator-Judge Marcos.

Senator-Judge Villanueva is recognized. You may proceed, Sir, when you are ready. You have two minutes.

QUESTIONS OF SENATOR-JUDGE VILLANUEVA

Senator-Judge Villanueva. Thank you, Mr. President.

Madam Witness, how long have you been the LANDBANK DepEd Branch Manager?

Ms. Camposano. LANDBANK DepEd Manager, Sir? *Nandoon po ako ng May 2022 and hanggang September 2024. So mga two years, more or less.*

Senator-Judge Villanueva. *Tinanong ko po iyon dahil ang kaibahan ninyo po doon sa isang bank manager, kayo ho, iyang LANDBANK po ng DepEd ay nandoon po mismo sa compound ng DepEd. Is that correct?*

Ms. Camposano. Yes, Sir.

Senator-Judge Villanueva. *Kanina po, binanggit iyong unusual at ano iyong usual. Ang sinasabi n'yo po bang unusual lamang ay iyong DepEd ang nag-withdraw ng cash na ganitong kalaki, ngunit sa ibang departamento, nakakapag-withdraw sila ng malalaking salapi, kagaya po ng binanggit ninyo kanina?*

Ms. Camposano. Yes, Your Honor.

Senator-Judge Villanueva. *Ito po kaya ay dahil ang DepEd nitong mga taon na binanggit ay nagkaroon ng confidential funds? Is that a correct statement?*

Ms. Camposano. *Hindi ko po alam.*

Senator-Judge Villanueva. *Hindi ninyo po alam. Tama po dahil hindi ninyo naman inaalang kung saan po ito, ano? Ang trabaho ninyo lang po ay, nabanggit ninyo nga ho kanina, ang DBM ang nagpo-provide ng funding at ang ahensiya naman ang nag-o-authorize ng disbursement. Ang trabaho ninyo lang po talaga ay to verify and pay the corresponding instrument.*

Ms. Camposano. Yes, Sir.

Senator-Judge Villanueva. *At iyon po iyong inyong ginawa?*

Ms. Camposano. *Opo.*

Senator-Judge Villanueva. *At tingin ninyo po, walang pagkakamali kayong ginawa, lahat po ay legitimate, lahat po ay proper.*

Ms. Camposano. Yes, Sir.

Senator-Judge Villanueva. *Comparing po doon sa previous administration bago po nagkaroon ng confidential funds, wala pong ganitong kalaki na wini-withdraw ang Department of Education. Is that correct?*

Ms. Camposano. During my time, wala po.

Senator-Judge Villanueva. *Kaya po nabanggit ninyo na unusual.*

Ms. Camposano. Yes, Sir.

Senator-Judge Villanueva. *Dito po sa payee naman ng individual officer as payee, masasabi n'yo po ba na usual practice for checks of this nature to be made payable to a designated special disbursing officer who would personally receive the cash? Nagbabago lamang po iyong designated officer while the process remains generally the same.*

Ms. Camposano. *Binabayaran po namin kung sino iyong payee po ng tseke.*

Senator-Judge Villanueva. Which is a usual matter, na nagpapalit.

Ms. Camposano. *Hindi ko po ano kung nagpapalit-palit sila. Basta't ang ano po namin is kung sino iyong payee ng tseke, iyon po ang babayaran namin.*

Senator-Judge Villanueva. *Kaya nga po, at kung magpalit man ng pangalan, kung sino iyong nakasulat.*

Ms. Camposano. Yes, Sir.

Senator-Judge Villanueva. Last question. When there is a change in the Department of Education administration or in its authorized officers, *iyong LANDBANK po ba require updated authorizations, specimen signatures, designated contacts, and other verification bago ninyo po i-process iyong mga transaction?*

Ms. Camposano. *Pagka po nagpalit ang mga authorized signatories po ng isang department, ng isang agency, humihingi po kami ng mga specimen signatures and letter na sila po ang mga authorized nating signatories.*



Senator-Judge Villanueva. *At itong requirements na ito na-comply bago ninyo ni-release iyong cash?*

Ms. Camposano. Yes.

Senator-Judge Villanueva. *Maraming salamat, Madam Witness.*

The Presiding Officer. Thank you, Senator Joel Villanueva.

Our distinguished Senate President, Senator Gatchalian, you may proceed, Sir, when you are ready. You have two minutes.

QUESTIONS OF SENATE PRESIDENT GATCHALIAN

The Senate President. Thank you, Presiding Officer.

Magandang hapon, Ms. Camposano. Just some follow-up questions lang. Ano po iyong mga transactions, typical transactions ng DepEd sa inyong branch?

Ms. Camposano. *Mga encashment po.*

The Senate President. *Anong klaseng mga encashments?*

Ms. Camposano. *Mga encashment po ng usually mga overtimes or whatever po ng mga tao.*

The Senate President. So, *mga payroll-related?*

Ms. Camposano. Yes, Sir.

The Senate President. *Iyong payroll-related ba, cash ang ini-encash nila?*

Ms. Camposano. Yes, Sir.

The Senate President. *Gaano kalaki iyon, typically?*

Ms. Camposano. *Ang DepEd po kasi ay may payroll arrangement sa amin. So, nagpapadala lang sila ng advice para mai-credit po iyong payroll ng mga tao.*

The Senate President. *Pero hindi siya cash na wini-withdraw.*

Ms. Camposano. No, Sir.

The Senate President. Credit siya. Other than payroll, *may iba pang mga— ano pa iyong mga ibang transactions ng DepEd sa inyong branch?*

Ms. Camposano. Usually kasi, Sir, *iyong mga ini-encash nila is iyong mga overtime pay, iyong mga ng COS, mga contractuals.*

The Senate President. Cash iyon.

Ms. Camposano. Cash.

The Senate President. *Ini-encash nila. So, ang binibigay ninyo sa kanila cash?*

Ms. Camposano. Yes, Sir.

The Senate President. Typically, *magkano iyon in a month, on the average? So, ito for overtime ng mga empleyado, tapos cash—pinapa-encash sa inyo iyong check, tama?*

Ms. Camposano. Yes, Your Honor.

The Senate President. Typically, *magkano iyon in a month?*

Ms. Camposano. *Hindi ko na siya ma-recall, pero way below.*

The Senate President. More or less lang. More or less P10 million, P20 million?

Ms. Camposano. No.

The Senate President. *Mga magkano, five million, more or less?*

Ms. Camposano. *Baka—iyong total for the month?*

The Senate President. For the month *lang*.

Ms. Camposano. *Baka mga hundreds lang siguro iyon.*

The Senate President. Hundreds million?

Ms. Camposano. No, hundred thousands.

The Senate President. So, hundred thousands. So, hundred thousands *ang* typical encashment for payroll.

Ms. Camposano. Hundred thousand, two hundred, *mga ganoon lamang po.*

The Senate President. Hundred thousand.

And then, *narinig ko kanina na galing kayo sa ibang branch.*

Ms. Camposano. Yes, Sir.

The Senate President. *May experience rin kayo sa ibang government agencies?*

Ms. Camposano. *Mayroon po.*

The Senate President. All right. *Mayroon rin ba kayong mga experience na ganito kalaking amount ang ini-encash ng isang government agency?*

Ms. Camposano. As to amount, *hindi ko na rin po siya matandaan. Pero ang alam ko po malaki rin po iyong ini-encash ng ibang government agencies.*

The Senate President. *Ganito, to a tune of P37.5 million, around that vicinity?*

Ms. Camposano. More or less *siguro*, Sir.

The Senate President. More or less. So, *mayroon ganyan kayong na-experience sa pag-e-encash sa ibang branch.*

Ms. Camposano. Yes, Your Honor.

The Senate President. *Tama po ba?*

And then, *balik tayo dito sa DepEd. Doon sa pag-a-advise sa inyo tuwing mag-e-encash, gaano kaaga dapat mag-advise sa inyo bago mag-encash? Kung kailangan ng cash.*

Ms. Camposano. *Opo. Usually dapat morning masabihan na po kami. Kasi siguro mga 12:00 o'clock magka-cut-off na rin po iyong Cash Center namin para i-request din po iyon.*

The Senate President. So, within 24 hours *dapat ma-advise na kayo.*

Ms. Camposano. *Hindi naman siya 24 hours, Sir.*

The Senate President. Less than 24 hours.

Ms. Camposano. Yes.

The Senate President. *'Pag nasabihan kayo, mapapadala ninyo kaagad doon iyong cash na ganoon kalaki.*

Ms. Camposano. Yes. *May cut-off po kasi ang Cash Center namin, siguro mga around 12:00 o'clock. So, 'pagka mas later ng 12:00 o'clock, hindi pa rin namin masagot na maide-deliver sa amin iyon the following day.*

The Senate President. Okay. *Itong branch ninyo particularly para sa DepEd, tama po ba?*

Ms. Camposano. Yes, Sir.

The Senate President. *Sa inyong pagkaalam sa mga past DepEd officials, past Secretaries, mayroon na bang na-encash na ganito ho kalaki? Sa inyong pagkaalam ha, kasi alam ko two years pa lang kayo doon pero sa inyong mga pag-uusap sa inyong staff.*

Ms. Camposano. *Hindi namin napag-uusapan, Sir. Ang alam ko lang po is iyong stint ko sa DepEd.*

The Senate President. *Hindi ninyo napag-uusapan sa mga subordinates ninyo kung may mga ganitong encashment na malalaki, may mga ganoon bang pag-uusap kayo?*

Ms. Camposano. *Wala po.*

The Senate President. *Wala naman.*

Thank you, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senate President Gatchalian.

Next to make his interjections would be Senator Raffy Tulfo. You are recognized Sir, you may proceed when you are ready. You have two minutes, Sir.

QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). *Madam Witness, ayon sa COA Circular 2015-01, pagdating sa disbursement ng confidential fund, ang authorized lang dapat talaga iyong head ng agency or iyong designated person ng agency na iyon. Do you agree? And in this case, ang SDO is Edward Fajarda. Alam na natin, kanina pa natin pinag-usapan. Correct?*

Ms. Camposano. Yes, Sir.

Senator-Judge Tulfo (R). *Now, anong mga dokumentong isinumite sa Landbank—DepEd Landbank para magpapatunay na in fact talagang si Edward Fajarda ang designated SDO?*

Ms. Camposano. Wala po.

Senator-Judge Tulfo (R). Wala?

Ms. Camposano. Wala po.

Senator-Judge Tulfo (R). *Ano'ng ibig sabihin ng "wala". So walang dokumentong isinumite na dine-designate si Fajarda ng head ng agency na iyan para sabihin, "Ito ang SDO, ito iyong magiging katransaksyon ninyo?" Wala?*

Ms. Camposano. *Wala po.*

Senator-Judge Tulfo (R). *Laway lang?*

Ms. Camposano. *Nagpunta po doon si Mr. Fajarda, na siya iyong payee, at nag-present po siya ng identification.*

Senator-Judge Tulfo (R). *Of course. Pero dapat mayroon siyang dokumentong pini-present na siya ang dine-designate ng head ng agency na iyon bilang SDO, right?*

Ms. Camposano. *Wala po siyang na-present sa amin.*

Senator-Judge Tulfo (R). *Wala? And then, you honor it? Face value? Nagpakita lang siya ng dokumento, "Ako si Fajarda, at ako iyong designated SDO," just like that? And you said, "Okay"?*

Ms. Camposano. Yes, Sir.

Senator-Judge Tulfo (R). *Wow. No. Under the COA circular, it should only be the head of that agency, who happens to be the VP. Or, kung ayaw ni VP, magde-designate siya ng tao na maging SDO niya, at mayroon siyang dokumentong pipirmahan para ini-endorso niya ang SDO na iyon who happens to be Fajarda. And you said, "Wala." So sinabi ni Fajarda, "Hello! Ako si Fajarda, ako ang designated na SDO ng DepEd," and agad-agad pinaniwalaan ninyo?*

Ms. Camposano. *During the first encashment, na-mention po ni Ma'am Sonia na mag-e-encash si Mr. Fajarda, pero parang hindi naman niya na-mention na SDO.*

Senator-Judge Tulfo (R). *No, Ma'am. Ang ibig kong sabihin, dapat someone should have endorsed Fajarda as the SDO for the DepEd. Sabi mo, "Wala." So pumunta lang si Fajarda doon, nag-present—iprinisinta niya ang sarili niya, sinabi niya, "Ako ang SDO ng DepEd," and then sabi ninyo, "Okay, sige."*

Ms. Camposano. Yes.

Senator-Judge Tulfo (R). *So hindi kayo sumunod doon sa patakaran ng COA circular?*

Ms. Camposano. *Wala pong na-present sa amin, Sir.*

Senator-Judge Tulfo (R). *Wala. Okay. So paano ninyo malalaman kung si Fajarda talagang authorized na mag-withdraw o makipag-transact ng limpak-limpak na salapi sa Landbank DepEd?*

Ms. Camposano. As payee. As payee of the tseke, in-honor na po namin iyon.

Senator-Judge Tulfo (R). As payee of the tseke. *So sino ang tumatawag sa inyo para sabihin na si Fajarda pupunta diyan at mag-withdraw ng such and such amount of money the day before or two days before?*

Ms. Camposano. Si Ms. Sonia De Leon po.

Senator-Judge Tulfo (R). *Sino po si Sonia De Leon?*

Ms. Camposano. *Siya po ang head ng Cash Division ng DepEd.*

Senator-Judge Tulfo (R). Okay. *Siya iyong kilala ninyong head, Cash Division ng DepEd. Pero you know what, nagtataka pa rin ako na wala kayong hawak na dokumento na nagsasabing si Fajarda ang designated SDO coming from the head of that agency na pirmado? Wala?*

Ms. Camposano. Wala, Sir.

Senator-Judge Tulfo (R). Thank you, Madam—

QUESTIONS OF THE PRESIDING OFFICER

The Presiding Officer. Thank you, Senator-Judge Raffy. Actually, the Chair would like to make a brief interjection.

The Presiding Officer. The payee of the check is Fajarda, correct, Ma'am?

Ms. Camposano. Yes, Sir.

The Presiding Officer. *So kung sino— kung kanino nakapangalan iyong tseke, doon ninyo ibibigay?*

Ms. Camposano. Yes, Sir.

The Presiding Officer. *Iyong cash kapalit noong tseke?*

Ms. Camposano. Yes, Sir.

The Presiding Officer. *Kung SDO man siya o hindi. Pero sang-ayon sa COA circular, SDO lamang ang puwedeng pangalanan ng mga ganiyang tseke. Hindi niyo na po alam iyong bagay na iyon?*

Ms. Camposano. *Nag-ano lang po kami sa payee ng tseke, Sir.*

The Presiding Officer. *Kung kaninong pangalan iyong nakalagay doon, iyon po ang sinusunod ninyo.*

Yes, Representative Chua.

Representative Chua. Yes, Your Honor. Thank you, Your Honor. Your Honor, the witness has no knowledge as to the designation of Mr. Fajarda and as to the purpose of the fund, Your Honor.

The Presiding Officer. As to being SDO, yes. I believe you'll be presenting another witness for that.

Representative Chua. Yes. We are going to present another witness for that, Your Honor. Thank you, Your Honor.

The Presiding Officer. Duly noted.



QUESTIONS OF SENATOR-JUDGE AQUINO

The Presiding Officer. Senator Judge Aquino is recognized. You may proceed Sir, when you're ready. You have two minutes.

Senator-Judge Aquino. Yes. Before my line of questioning, *gusto ko lang pong klaruhin rin po, Ma'am. Alam niyo po ba na para sa confidential funds iyong pondong iyan?*

Ms. Camposano. No, Your Honor.

Senator-Judge Aquino. *Hindi rin po, 'di ba?* And you're not required to ask?

Ms. Camposano. Yes.

Senator-Judge Aquino. *Hindi rin ho kayo nagtatanong talaga?*

Ms. Camposano. Yes.

Representative Chua. Okay. *Pinag-uusapan ho kasi iyong covered, suspicious, pati iyong salitang "unusual." Sa inyo pong pagkakaalam bilang isang bank manager, ano po ba ang pinagkaiba ng covered transaction, suspicious transaction?*

Ms. Camposano. *Ang covered transaction po is automatic po iyang inire-report sa AMLC. May system po ang LANDBANK na ang mga transactions ng bangko na in excess of 500,000 ay automatic na naka-report.*

Ang suspicious transaction naman po ay pagka mayroon kaming nakita, que malaking amount, que maliit, basta parang mayroon—parang doubtful iyong transactions, kailangan po naming i-report as STR, suspicious transaction report.

Senator-Judge Aquino. Okay. So *iyong covered transaction po, tama po ba na walang human intervention ito? Sa sistema lang po ito?*

Ms. Camposano. The STR?

Senator-Judge Aquino. *Sa covered transactions, may human intervention po ba ito?*

Ms. Camposano. *Wala po. Wala pong human intervention. System po iyan.*

Senator-Judge Aquino. Okay. *Ano po ito, papasok o palabas o encashment o basta kahit anong above 500,000?*

Ms. Camposano. Yes, Sir. *Kahit na ano po above—in excess of 500,000 naka-report po siya.*

Senator-Judge Aquino. Okay. So we can safely assume that this transaction was covered. Well, you don't want to deduce that, 'no? *Ayaw ninyo pong sabihin.*

Ms. Camposano. Yes, Sir.

Senator-Judge Aquino. *Iyong suspicious, sino po ang nagde-determine na suspicious ang isang transaction? Who determines that?*

Ms. Camposano. *Sa amin po, sa branch, pagka po may napansin kami, ako po ang nagre-report niyan din.*

Senator-Judge Aquino. *Kayo po? Wala ho ibang puwedeng mag-report or ang branch manager lang po iyong puwedeng mag-report?*

Ms. Camposano. *Ako kasi iyong bali nagre-report, ako iyong nagsa-sign ng report.*

Senator-Judge Aquino. Okay. So *ito po, tinanong ko rin po ito kanina doon sa manager ng LANDBANK, pero nais ko lang po marinig rin po sa inyo. Nagkaroon po ba ng suspicious reporting ng transaksyong ito sa AMLA?*

Ms. Camposano. *Hindi po kami puwedeng mag-divulge ng any information regarding sa reporting po ng STR, Sir.*

Senator-Judge Aquino. Okay. And *nasa batas naman po iyan na hindi ho kayo puwedeng mag-divulge.*

Ms. Camposano. Yes.

Senator-Judge Aquino. *Iyong sinabi ninyo po kaninang unusual, iba po iyon sa suspicious?*

Ms. Camposano. *Iba po.*

Senator-Judge Aquino. Okay. Can you help me understand *ano po iyong pinagkaiba ng unusual at saka suspicious sa inyo pong perspektiba?*

Ms. Camposano. Unusual, meaning, *kakaiba lang iyong transaction, pero not necessarily suspicious.*

Senator-Judge Aquino. Okay. *Iyong suspicious po, tama po ba may eksaktong depinisyon iyan sa mga batas natin? Iyong unusual po ay inyo lang pong pakiwari?*

Ms. Camposano. Yes, Sir.

Senator-Judge Aquino. Okay. And *kayo po bilang branch manager, ayaw ninyo pong sabihin kung ni-report ninyo po ito, pero sa inyo pong karanasan, lahat po na nakikita ninyong hindi pangkaraniwan nire-report ninyo po ba sa AMLA? Not particularly this case, but in general?*

Ms. Camposano. *Hindi naman po. Hindi lahat ng mga unusual transaction ay nire-report namin as suspicious.*

Senator-Judge Aquino. All right. *Maraming salamat, Mr. Chair.*

QUESTIONS OF SENATOR-JUDGE EJERCITO

The Presiding Officer. Senator-Judge Ejercito is recognized for his interjections. You may proceed Sir, when you're ready. You have two minutes.

Senator-Judge Ejercito. Yes, thank you, Sir, Mr. Presiding Judge.

Just a clarification. Ma'am, *kanina po nakikinig po ako. Ang nabanggit ninyo, sabi ninyo nga na ilang beses sabi ninyo unusual po iyong 37.5. Madalas na transaction sa inyo pong branch ay nag-a-average ng 10 to 20 million. Tama ho ba ang aking pagkakarining?*

Ms. Camposano. *Opo. Mga nasa 10 million.*

Senator-Judge Ejercito. *So sa isang karaniwang araw, ano po iyong— sa inyong experience, ano daw po iyong pinakamalaking halaga ng cash na inyo pong nailabas sa inyong sangay para po sa isang kliyente, in this case itong ahensya ang DepEd po? Ano po iyong pinakamalaking amount? Ito na po ba iyong pinakamalaki? Dahil sabi ninyo kanina ay unusual.*

Ms. Camposano. *Pinakamalaking pong amount na nailabas nga po ay iyong na-encash is iyong 37.5.*

Senator-Judge Ejercito. *Ito na po.*

Ms. Camposano. *Opo.*

Senator-Judge Ejercito. *So ito ay nagsimula noong—kailan po ito nagsimula, iyong ganitong withdrawals, iyong ganitong kalaking amount?*

Ms. Camposano. *Noon pong February, Sir.*

Senator-Judge Ejercito. *Ito na lang po, last question, Mr. Presiding Officer. Nangyayari po pa ba itong ganitong kalaking amount, ganitong kalaking halaga na withdrawal sa ngayon?*

Ms. Camposano. *During my time, wala na po iyon. Iyon lang pong tatlong iyon ang—*

Senator-Judge Ejercito. *Iyong tatlo lang? Hindi na po nasundan?*

Ms. Camposano. *Wala na po.*

That's all. Thank you.

The Presiding Officer. Thank you, Senator-Judge Ejercito.

QUESTIONS OF THE PRESIDING OFFICER

The Presiding Officer. Thank you, Senator Joseph Ejercito.

If there are no other Senator Judges who wishes to make interjections, Chair would like to make a few.

Ms. Camposano, Ma'am, *tama po bang translation ito? Unusual sa Tagalog kakaiba.*

Ms. Camposano. Yes, Your Honor.

The Presiding Officer. Suspicious, *tama po ba kaduda-duda?*

Ms. Camposano. Yes, Your Honor.

The Presiding Officer. *Sang-ayon sa AMLC, iyong kaduda-duda dapat i-report, pero iyong kakaiba hindi kailangang i-report.*

Ms. Camposano. Yes, Your Honor.

The Presiding Officer. *Tama po. Sabi ninyo po kasi kanina iyong unusual hindi kailangan i-report, pero iyong suspicious kailangan i-report. Sang-ayon sa batas. Hindi ko po sinasabing suspicious ito ha. Sinasabi ko lang iyon iyong sinasabi ng batas.*

Ms. Camposano. Yes, Sir. *Ang suspicious transaction po ay kailangan nating i-report as STR sa AMLC and iyong unusual, kung unusual lang naman siya but wala naman pong suspicious doon sa transaction, hindi po siya kailangang i-report.*

The Presiding Officer. *Isa na lang pong katanungan, curious lang po ako. Sabi ninyo po para pangalagaan ang kaligtasan ng inyong empleyado, hindi puwedeng ihatid ng sinumang empleyado ng bangko iyong pinagbigyan ng pera, gaano man kaliit o gaano kalaki dahil kapag hawak niya na iyon, kaniya na iyon. Tama po ba?*

Ms. Camposano. Opo.

The Presiding Officer. *Ibig sabihin po ba noon 'pag na-withdraw na iyong pera at hawak na ng depositor iyong pera, 'pag may nang-hold up noong bangko matapos niyang mahawakan iyong pera, siya na ho iyong mawawalan, hindi na kayo. Ganoon po ba iyon? Hindi. Sa praktikalang usapan. Gayun din 'pag labas niya ng bangko ninyo, na-hold up siya doon, hawak niya na. Wala na kayong pakialam hindi ba? Kaya kayo may polisiyang ganoon na bawal maghatid dahil nga pag hawak na niya, kaniya na iyon?*

Ms. Camposano. Opo.

The Presiding Officer. *Kaniya na iyon, pananagutan niya na iyon, wala na kayong pakialam ano man ang mangyari doon.*

Ms. Camposano. Yes, Your Honor.

The Presiding Officer. *Mawala man iyon, nakawin man iyon, hold-up-in man iyon, labas na kayo doon.*

Ms. Camposano. Yes, Your Honor.

The Presiding Officer. That would be all, Ms. Camposano.

QUESTIONS OF SENATE PRESIDENT GATCHALIAN

The Presiding Officer. Are there any other interjections or interventions by any of the Senator-Judges?

The Senate President is recognized.

Senate President Gatchalian. One quick question, Mr. Presiding Officer.

Ms. Camposano, *sabi ninyo kanina unusual. Pero may nasabi rin kayo kanina in your past experience na may government organization na naglabas ng perang ganoon kalaki rin. Bakit unusual po sa DepEd, pero hindi unusual doon sa government organization na iyon?*

Ms. Camposano. Usually *kasi* iyong mga ibang agencies po normal na, normal na from ano na naglalabas sila ng ganoon. Ito po kasing sa DepEd kaya ko po nasabing unusual is ito lang pong tatlong ito ang nangyari.

Senate President Gatchalian. So in other words, doon sa ibang government agencies madalas sila ganito kalaking amount ang lumalabas. Regular iyon.

Ms. Camposano. Opo.

Senate President Gatchalian. Sa DepEd hindi regular.

Ms. Camposano. Yes, Your Honor.

Senate President Gatchalian. Thank you, Mr. Presiding Officer.

QUESTIONS OF SENATOR-JUDGE LACSON

The Presiding Officer. Senator-Judge Lacson is recognized for his intervention. You may proceed Sir, when you're ready.

Senator-Judge Lacson. Thank you, Mr. Presiding Officer.

Further clarification lang. Binabasa ko po iyong Anti-Money Laundering Act, wala naman pong kaduda-duda doon. Either covered or suspicious. 'Pag covered, may threshold. Maski hindi suspicious, kailangang i-report kung above the threshold amount, which is P500,000. Wala po sa batas iyong kaduda-duda. Either it's suspicious or covered transaction.

Ms. Camposano. Ang ano kasi iyon, Sir, pagka ang covered transaction automatic pong naka-report siya as covered transaction in excess of P500,000. Sa suspicious transaction po parang nagkaroon po tayo ng doubt, hindi ba? And then inimestigahan po natin at iyon pong sa imbestigasyon natin ay hindi siya pumasa, suspicious pa rin po siya. So that's when kami magre-report as suspicious transaction.

Senator-Judge Lacson. Pero there's no such thing in the law na doubtful or kaduda-duda. It's just covered or suspicious.

Ms. Camposano. So parang nagduda ka and inimestigahan

Senator-Judge Lacson. Walang middle layer ibig sabihin.

Ms. Camposano. Yes.

Senator-Judge Lacson. Pag above the threshold tapos covered institutions like casinos, real estate, automatic ire-report iyan kasi covered institutions.

Ms. Camposano. Yes, Sir.

Senator-Judge Lacson. Ngayon, ordinary depositor pumunta sa bangko, nag-deposit o nag-withdraw doon ng more than P500,000, that's above the threshold, it becomes a covered transaction.

Ms. Camposano. Yes, Sir.

Senator-Judge Lacson. So wala hong kaduda-duda.

Ms. Camposano. Yes, Sir.

Senator-Judge Lacson. Suspicious, suspicious lang. Wala iyong middle. It's either you categorize it into covered or suspicious. Huwag na ho tayong mag-usap ng kaduda-duda basta't — or unusual pala, sorry. Huwag na nating pag-usapan iyong unusual. Either kaduda-duda lang or covered.

Ms. Camposano. Yes, Sir.

Senator-Judge Lacson. Thank you.



QUESTIONS OF SENATOR-JUDGE VILLANUEVA

The Presiding Officer. Senator-Judge Villanueva for his second round.

Senator-Judge Villanueva. Mr. President, just a short interjection. I was looking at the BSP Circular No. 1215, and in this circular of the *Bangko Sentral ng Pilipinas*, it says here: "A transaction is considered unusual when it shows patterns that are inconsistent with the account owner's usual behavior, is not commensurate with the known business or financial capacity of the account owner, or deviates from the account owner's profile." So *naintindihan ninyo po ito* when you say, "unusual," *hindi po ba? Pumapasok po dito sa BSP circular.*

Ms. Camposano. Again, Sir?

Senator-Judge Villanueva. Whenever you said that this is unusual, *pumapasok po dito sa kategoryang ito pumapasok ng BSP Circular 1215 iyong binabanggit po ninyo. Na ang transaksyon ay considered unusual kung ito po ay nagpapakita ng patterns that are inconsistent with the account owner's usual behavior.*

Ms. Camposano. So *kaya po siya unusual*, Sir.

Senator-Judge Villanueva. *Iyon nga po. Kaya tinatanong ko po kayo*, whenever you say this, *na it's unusual, dahil pumapasok po siya sa kategoryang ito?*

Ms. Camposano. Yes, Sir.

Senator-Judge Villanueva. *Salamat po, Ginoong Pangulo.*

The Presiding Officer. Senator-Judge Lacson is recognized.

Senator-Judge Lacson. *Medyo na-confuse lang ako kanina.* I did not mean *kaduda-duda*, but *iyong unusual ang sinabi kong wala.* Yes. Thank you. *Kasi iyong kaduda-duda na-mistook ko as unusual.*

The Presiding Officer. *Ako na po iyong nag-translate noon: suspicious equals kaduda-duda; unusual, kakaiba.*

QUESTIONS OF SENATOR-JUDGE LEGARDA

The Presiding Officer. Senator-Judge Loren Legarda is recognized for her interjection. You may proceed Ma'am, when you are ready. You have two minutes.

Senator-Judge Legarda. Just very briefly. Thank you, Mr. Presiding Officer.

After hearing all the words unusual, suspicious, illegal, but I just wanted to understand, Ma'am Camposano, *matapos po maging subject ng congressional inquiry ang mga transaksyon na ito, nagsagawa ba po ang LANDBANK ng anumang internal review kung papaano hinanda, na-authorize, or na-release ang cash?*

Ms. Camposano. Internal review *po ng LANDBANK?*

Senator-Judge Legarda. Yes. Because you used words unusual, suspicious, all of that. I just wanted to know, *pagkatapos po nangyari iyon ay was there any internal review?* I just wanted to understand that.

Ms. Camposano. After *ng Congress hearing*, Your Honor?

Senator-Judge Legarda. Yes, because *doon po namin unang nabatid iyong inyong mga statements.* Yes.

Ms. Camposano. *Hindi ko na po masasagot iyan*, Your Honor, because I was with LANDBANK DOTr *na po noong time na iyon. So kung ano man po iyong nangyari with DepEd branch at that time after the congressional hearing, hindi ko po alam.*

Senator-Judge Legarda. So after the hearings, when you made these manifestations, *hindi po kayo pamilyar kung nagkaroon po ng pagbabago, ng review, i-assess iyong proseso dahil po sa inyong mga kaalaman.*

Ms. Camposano. Yes, Your Honor.

Senator-Judge Legarda. *Lumipat na po kayo?*

Ms. Camposano. No. I was with LANDBANK DOTr *na* during the congressional hearing.

Senator-Judge Legarda. Yes. And so, you were not called for any review based on your revelations?

Ms. Camposano. *Wala po.*

Senator-Judge Legarda. Okay. So I had many questions I was supposed to ask you: *ano ang saklaw ng review, ano ang security arrangements, documentation, reporting requirements.* But if you're not familiar with the review, so you will not be able to answer.

So, do we assume then that the process is still the same? *Kung walang binago po, ibig po bang sabihin na LANDBANK considered the existing process sufficient, and that the same transaction could still be handled in substantially the same manner today? Gusto ko po lamang maintindihan kung unusual, usually kakausapin dapat iyan o a-assess ang proseso.* But if it was not, how is the process today? *Paano po nagbago kung mayroon man?*

Ms. Camposano. *Kung sa ngayon po, nagbago po ang proseso niyan dahil mayroon na po tayong BSP guidelines na ang amount lang po ng cash na mailalabas is up to one million. Then, pagka more than one million ay kailangan na po ng necessary approval.*

Senator-Judge Legarda. Yes. I'm talking about the changes, evaluation, assessment after the congressional inquiry. Are you referring to a BSP guideline that was given after the congressional inquiry?

Ms. Camposano. *Ay, no, Ma'am.*

Senator-Judge Legarda. Yes, that's what I'm referring to, from the time, Ma'am, that you gave those statements and if you found it unusual, and up to now, I wanted to know whether there was any internal—yes, I take note of that—internal assessments to review so that there could be changes for security arrangements. If none and if not familiar with you, I leave it at that except that normally in life when something is unusual, which is not necessarily suspicious, which is not necessarily illegal, but you assess and you make changes to improve the process. But you're saying you are not familiar with any such investigations or assessment or review.

Ms. Camposano. Yes, Ma'am.

Senator-Judge Legarda. Okay. Thank you.

QUESTIONS OF SENATOR-JUDGE PADILLA

Senator-Judge Padilla. *Maraming salamat po. Isang mabilis lang po ito. 'Pagka sinabi pong "unusual," hindi pangkaraniwan, hindi po ba?*

Ms. Camposano. Yes, Sir.

Senator-Judge Padilla. *Kapag sinabing "suspicious," ibig sabihin kahina-hinala?*

Ms. Camposano. *Opo, Sir.*

Senator-Judge Padilla. *Wala po kayong nakitang kahina-hinala, hindi po ba?*

Ms. Camposano. *Wala naman po.*

Senator-Judge Padilla. *Opo. Ibig sabihin, hindi po ilegal?*

Ms. Camposano. *Wala namang—Ang ano lang po kasi namin is iyong sa check encashment.*

Senator-Judge Padilla. *Opo. Ibig sabihin, wala pong ilegal kayong nakita?*

Ms. Camposano. *Wala po.*

Senator-Judge Padilla. Okay. *Maraming salamat po.*

Sa Prosecution naman po ako. Ginoong Prosecutor, pangkaraniwan po ba ang confidential fund?

Representative Chua. Your Honor, *iyong confidential fund po, sa aking pagkakaalam, ito po ay binibigay sa—*

Senator-Judge Padilla. *Pangkaraniwan po ba siya na ibinibigay?*

Representative Chua. *Depende po. Depende po sa mga government agency at saka head ng agency.*

Senator-Judge Padilla. *So, hindi po siya pangkaraniwan kasi depende?*

Representative Chua. *Tama po.*

Senator-Judge Padilla. *Salamat po.*

The Presiding Officer. Thank you, Senator-Judge Padilla.

QUESTIONS OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A). I think most Senators already clarified, but just a little bit more. *Magandang hapon, Madam Witness.*

Ms. Camposano. Good afternoon, Sir.

Senator-Judge Cayetano (A). So, are you familiar with confidential or intelligence or discretionary funds?

Ms. Camposano. No, Sir.

Senator-Judge Cayetano (A). Yes. So, *iyong usual or unusual, depende kung saan ka naka-assign kasi*, for example, *kung sa Malacañang ka naka-assign and parating may intelligence funds ang Malacañang* and whether—I don't know how much they usually withdraw—whether it's 25, 50, 100. So, if they always do it, then it's usual, right?

Ms. Camposano. Yes, Sir.

Senator-Judge Cayetano (A). If it's just a one time that year, “*Uy, unusual, bakit, bakit suddenly?*” Right? So, whether it's you or the previous witness, *ang tinatanong lang namin kung usual sa branch ninyo*. In your case *kasi*, you have been assigned to different branches handling different agencies, but not all agencies have confidential funds.

Ms. Camposano. Yes, Sir.

Senator-Judge Cayetano (A). *So iyong 'pag tinanong sa iyo, “usual,” you're just being honest kung, again, if it's “usual” or “not usual” or “unusual,” right?*

Ms. Camposano. Yes, Sir.

Senator-Judge Cayetano (A). Or put it another way, *hindi ba?* If you're a kind of person that you love everyone, and then first time *ko pumunta sa branch mo*, “I love Alan,” then it's usual. *Hindi ba, sabi nga ni Tom Jones, “It's not unusual to be loved by you,” hindi ba? Kung iyon ang usual.* If you're the type of person *naman* that you don't like anyone, then suddenly I go to your branch, *sasabihin naman noong mga tao doon, “Ma'am, medyo unusual, bakit mo nagustuhan siya?” Hindi ba?* So, I think *iyon din iyong isang kina-clarify ni Senator Tulfo, ni Senator Lacson, et cetera, na iba iyong “suspicious” and “covered” kasi may legal implications iyon, iyong “usual,” “unusual.”* We're just trying to get to the truth of what's happening here.

So, the other point that I want to make is that—*siguro sa Prosecution ko na ito itanong dahil we're all legislators here, Honorable Chua, 'no?* Is it usual for DepEd to have confidential funds?

Representative Chua. Your Honor, I believe that this is the first time that DepEd received confidential funds.

Senator-Judge Cayetano (A). Yes. In fact, here in the Senate in caucus, *ako lang halos ang nag-object*. I think *dalawa lang kami o tatlo. Ang sinabi ko noon sa chairman namin ng Committee on Finance, “If the Vice President needs that amount, let's put it all in OVP, same amount na nire-*

request *niya*.” *Kasi* at least *doon* usually *naman talaga mayroon kasi nga*—or *puwede kasi* Vice President *siya*. And then *kung siya ay nasa* Security Council or *kung siya ay nasa* any law enforcement, *ang* argument *ko noon*, “If you put it in DepEd, *paano ‘pag napalitan iyong* Secretary, will we continue it,” *et cetera*?

So, anyway, I just agree with the other senators here that as we go along, let’s help the public understand the difference between “covered,” “suspicious,” and “usual,” “unusual,” *para lang walang* conclusions that are made that are prejudicial to either the Prosecution or the Defense. Thank you.

Thank you, Presiding Officer.

DISCHARGE OF THE WITNESS BY THE PRESIDING OFFICER

The Presiding Officer formally discharged Ms. Camposano from further testimony.

ADMINISTRATIVE MATTERS

1. The Presiding Officer asked the Prosecution to identify its witnesses for the next scheduled trial.

Representative Luistro requested the issuance of subpoenas *duces tecum* and *ad testificandum* to former Commission on Audit-Intelligence and Confidential Funds Office (COA-ICFAO) State Auditor Roderick C. Wamil, incumbent COA-ICFAO State Auditor Xylene Mae L. Del Campo, and House of Representatives Legislative Information Resources Management Department (LIRMD) Director Marivic Pareja, to appear, in that order, during the trial on August 3, 4, and 5.

The Presiding Officer directed the Clerk of Court to issue the corresponding subpoenas *ad testificandum* and *duces tecum* to the witnesses identified by the Prosecution.

2. The Presiding Officer addressed the procedural issue previously raised by Senator Aquino on whether the Prosecution and the Respondent should alternately present evidence after each Article of Impeachment. He recalled having initially responded in the negative, citing the procedure followed during the Corona impeachment trial, in which the Prosecution first completed the presentation of evidence on all Articles of Impeachment which it did not withdraw, before the Defense presented its case.

The Presiding Officer stated that, following the suggestions of several Senator-Judges, he had consulted the Lead Counsels for the Prosecution and for the Respondent to determine whether they were willing to adopt the proposed alternative presentation, subject to the agreement of both parties. However, after reviewing the Prosecution’s Manifestation dated July 27, 2026, and the Respondent’s Response dated July 28, 2026, the Chair found that no agreement had been reached.

Accordingly, the Court reaffirmed its original ruling that the Prosecution would first complete the presentation of its evidence on all Articles of Impeachment that it will not withdraw, after which the Respondent would present its evidence-in-chief on the remaining Articles.

MANIFESTATION OF SENATOR ZUBIRI

Senator-Judge Zubiri proposed adjusting the trial schedule to 10:30 a.m. to 3:30 p.m. to accommodate senators with long commutes and reduce traffic-related delays. He also suggested that the regular Senate Plenary Session for that day commence at 3:00 p.m., noting that only minimal time would be needed to prepare the Session Hall.

The Presiding Officer, in turn, relayed the proposal of Senator Lapid that trial commence at 10:30 a.m., and conclude at 2:30 p.m. so that regular Senate Plenary Session could begin at 3:00 p.m.

Senator-Judge Lacson recommended that the proposed adjustment to the trial schedule be discussed in a caucus.

ORDERS OF THE PRESIDING OFFICER

The Presiding Officer announced that impeachment trial would commence at 10:00 a.m. on August 3, 2026, with the final trial schedule to be determined after the caucus.

He further announced that, with the authorization of the Senate President, the Senate would convene its regular Plenary Session at 3:00 p.m. later that day.

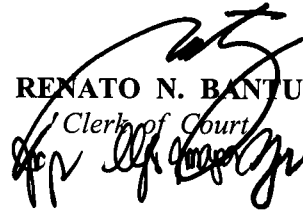
ADJOURNMENT OF THE IMPEACHMENT TRIAL

The Presiding Officer declared the impeachment trial adjourned until ten o'clock in the morning on Monday, August 3, 2026.

It was 1:45 p.m.

I hereby certify to the correctness of the foregoing.

Atty. RENATO N. BANTUG JR.
Clerk of Court



Approved on August 3, 2026